

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer:

Initials

Date

Agent:

Chief:

To be completed by City/County Clerk

License Fees Annual Fee: \$ 10500.00 Local License #: _____
 Prorated Fee: \$ _____ Date filed with clerk: 4 / 20 / 21
 Transfer Fee: \$ _____ Advertising Dates: (2 Weeks) 4-29 & 5-7-2021
 Publishing Fee: \$ 100.00 Hearing Date: 5 / 10 / 21
 Publishing Fee Direct Billed to Applicant: ☐
 License Term: upm / 31 / 2022 Through 3 / 31 / 2022
 Month Day Year Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant: HRARG DH Cheyenne WY LLCTrade/Business Name (dba): Dog HausBuilding to be licensed/Building Address: 3838 Atkin Street

Number & Street City State Zip County
Cheyenne WY 82001 Laramie

Mailing Address: 2999 N. 44th Street, Suite 400

Number & Street or P.O. Box City State Zip
Phoenix AZ 85018

Business Telephone Number: 307 630 2277 (602) 374-2020 Fax Number: (N/A)

E-Mail Address: THartrick@hannayra.com

Brief legal description and the zoning of the licensed building or site for licensed building: W.S. 12-4-102 (a) (vi)

lot 8 Block 1 Peeshing Market Place 4th MUB**FILING FOR**

- ☒ NEW LICENSE
☐ TRANSFER OF LOCATION

FILING IN (CHOOSE ONLY ONE)

- ☒ CITY OF: Cheyenne
☐ COUNTY OF: _____

FILING AS (CHOOSE ONLY ONE)

- ☐ INDIVIDUAL
☐ PARTNERSHIP
☐ LP/LLP
☒ LLC
☐ CORPORATION
☐ LTD PARTNERSHIP
☐ ORGANIZATION
☐ OTHER _____

☐ TRANSFER OWNERSHIP☐ ASSIGNMENT LETTER ATTACHED

FORMERLY HELD BY: _____

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)RETAIL LIQUOR LICENSE
☐ ON-PREMISE ONLY (BAR)☐ OFF-PREMISE ONLY (PACKAGE STORE)☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)

☐ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☒ BAR AND GRILL

LIMITED RETAIL (CLUB)
☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB

☐ MICROBREWERY
☐ WINERY
☐ DISTILLERY SATELLITE
☐ WINERY SATELLITE
☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS
☐ CONVENTION FACILITY
☐ CIVIC CENTER/EVENT CENTER/
 PUBLIC AUDITORIUM
☐ GOLF CLUB
☐ GUEST RANCH
☐ RESORT

To Assist the Liquor Division with scheduling inspections: **WHEN DO YOU OPERATE?**☒ FULL TIME (e.g. Jan through Dec)☐ SEASONAL/PART-TIME☐ NON-OPERATIONAL/PARKED

(specify months of operation)

DAYS OF WEEK (e.g. Mon through Sat)

HOURS OF OPERATION (e.g. 10a - 2a)

from Jan to Decfrom Mon to Sunfrom 11am to 11pm**ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 6**

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103 (a) (iii)

(1) OWN the licensed building?

☐ YES (own)

(2) LEASE the licensed building? (Lease must be through the term of the liquor license)

☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

(A) When the lease expires, located on page 5 paragraph 21:22 of lease.(B) Where the Sales provision for alcoholic or malt beverages is located, on page 5 paragraph 2.3 of lease. (MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601 (b) ☐ YES ☒ NO
3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:
-

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103 (b) ☐ YES ☒ NO

If "YES", explain: _____

5. If applicant is filing as an **Individual, Partnership or Club**: W.S. 12-4-102 (a) (ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

6. If the applicant is a **Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership**: W.S. 12-4-102 (a) (iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
HRA Restaurant Group LLC	N/A	2999 North 44th Street, Ste 400, Phoenix, AZ 85018	602.374.2000	New	100%	YES ☐ NO ☒	YES ☐ NO ☒
RCH-Goalz Holdings LLC	N/A	2999 North 44th Street, Ste 400, Phoenix, AZ 85018	602.374.2000	New	0%	YES ☐ NO ☒	YES ☐ NO ☒
HIP Lending Group LLC	N/A	2999 North 44th Street, Ste 400, Phoenix, AZ 85018	602.374.2000	New	0%	YES ☐ NO ☒	YES ☐ NO ☒
Robert Craig Hannay	4/17/1961	5115 E. Palomino Rd., Phoenix, AZ 85018	602.309.2113	New	0%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

7. BAR AND GRILL LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413 (a) ☒ YES ☐ NO

8. RESTAURANT LICENSE:

(a) Give a description of the dispensing room(s) and state where it is located in the building. W.S. 12-4-408 (b)
(e.g. 10 x 12 room in SE corner of building): _____

(b) Have you submitted a valid food service permit or application? W.S. 12-4-407 (a) ☐ YES ☐ NO

(c) Have you attached a drawing of the establishment that includes the restaurant dispensing room(s)? W.S. 12-4-410 (f) ☐ YES ☐ NO

9. RESORT LICENSE:

Does the resort complex:

(a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land?
W.S. 12-4-401(b)(i) ☐ YES ☐ NO

(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO

(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms?
W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)?
W.S. 12-4-401(b)(iv) ☐ YES ☐ NO

(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

10. MICROBREWERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT ☐ BAR AND GRILL ☐ WINERY

(b) Do you self distribute your products? W.S. 12-2-201(a)
(Requires wholesaler license with the Liquor Division) ☐ YES ☐ NO

(c) Do you distribute your products through an existing malt beverage wholesaler?
W.S. 12-2-201(g)(i) (Requires authorization to sell license with the Liquor Division) ☐ YES ☐ NO

11. WINERY LICENSE:

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT ☐ BAR AND GRILL ☐ MICROBREWERY

12. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

(a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO

(b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

(a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO

(b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

(a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO

(b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

(c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO

1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO

2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

15. LIMITED RETAIL (CLUB) LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- ☐ Restaurants: include a drawing of the establishment that includes the dispensing room(s) W.S. 12-4-410 (f).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a) (iii)/ W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

OATH OR VERIFICATION

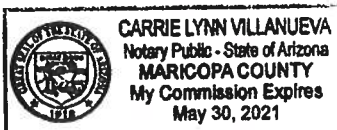
(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF WYOMING)
) SS.
COUNTY OF Laramie)

Signed and sworn to before me on this 13 day of April,
2021 that the facts alleged in the foregoing instrument are true by the following:

1)	<u>(Signature)</u>	<u>R. Craig Hannay</u> (Printed Name)	<u>President of the manager</u> Title
2)	<u>(Signature)</u>	<u>(Printed Name)</u>	<u>(Title)</u>
3)	<u>(Signature)</u>	<u>(Printed Name)</u>	<u>(Title)</u>
4)	<u>(Signature)</u>	<u>(Printed Name)</u>	<u>(Title)</u>
5)	<u>(Signature)</u>	<u>(Printed Name)</u>	<u>(Title)</u>
6)	<u>(Signature)</u>	<u>(Printed Name)</u>	<u>(Title)</u>

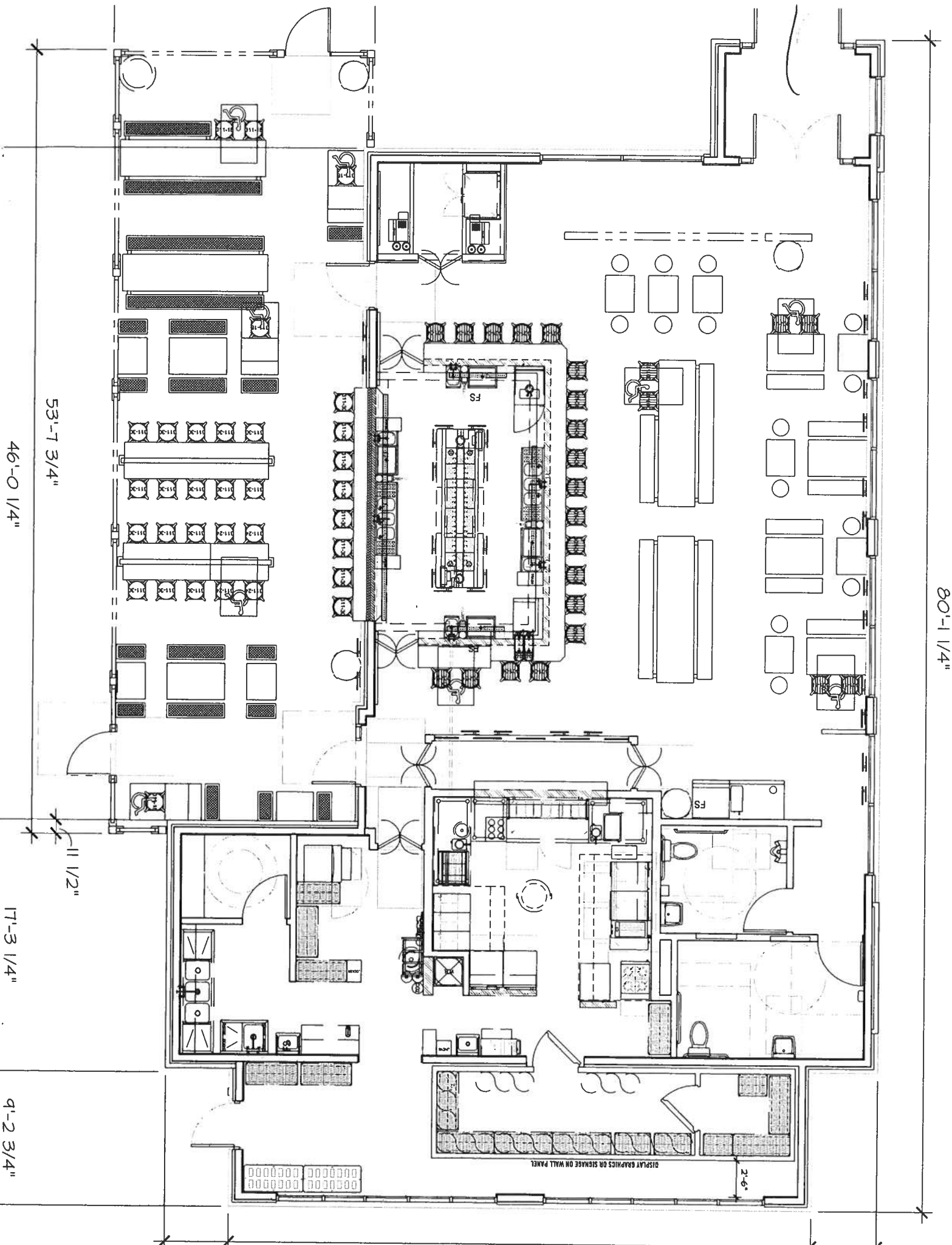


(SEAL)

Witness my hand and official seal:

Carrie Lynn Villanueva
Signature of Notary Public

My commission expires: May 30, 2021



80'-1 1/4"

53'-7 3/4"

46'-0 1/4"

11 1/2"

17'-3 1/4"

9'-2 3/4"

DISPLAY GRAPHICS OR SIGNAGE ON WALL PANEL

2'-6"



April 12, 2021

Mayor & Members of the City Council
2101 O'Neil Avenue
Cheyenne, WY 82001

Dear Mayor & Members of the Cheyenne City Council,

Please approve our Application for a Bar & Grill License for the Cheyenne, WY Dog Haus located at 3838 Atkin Street, Cheyenne, WY 92001.

HRARG DH Cheyenne WY, LLC, a wholly-owned subsidiary of HRA Restaurant Group, LLC, is excited to be purchasing and operating the Dog Haus franchise in Cheyenne, WY.

The Dog Haus Franchise is known for its craft-casual gourmet hot dogs, sausages and burgers, premium shakes and soft-serve ice cream, and a beer program that spotlights local brews. The Dog Haus mission includes creating a successful corporation that pays forward to the community. Dog Haus has partnered with No Kid Hungry, and a percentage of sales are donated to this organization.

We believe we have the vision, integrity and leadership to make this one of the most successful restaurants in the Dog Haus family.

Thank you in advance for considering our Application.

Sincerely,

A handwritten signature in blue ink, appearing to read "R. Hannay", is written over a blue circular line that forms a large, open loop. The signature is positioned above the printed name and title of the signatory.

R. Craig Hannay
President of Hannay Investment Properties, Inc. as
Manager of RCH-Goalz Holdings, LLC, as Member/Manager
of HRA Restaurant Group, LLC



HANNAY RESTAURANT GROUP

April 12, 2021

City of Cheyenne
2101 O'Neil Avenue, RM 101
Cheyenne, WY 82001

To Whom it May Concern:

HRARG DH Cheyenne WY, LLC will utilize the TIPS training program for its servers and bartenders.

Sincerely,

A handwritten signature in blue ink, appearing to read "R. Hannay", is written over the typed name and title. The signature is fluid and cursive, with a long, sweeping underline that extends to the right.

R. Craig Hannay
President of Hannay Investment Properties, Inc. as
Manager of RCH-Goalz Holdings, LLC, as Member/Manager
of HRA Restaurant Group, LLC

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF Authority

HRARG DH CHEYENNE WY, LLC

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **8th** day of **October, 2020**.



Filed Date: 10/08/2020

A handwritten signature in cursive script, reading "Edward A. Buchanan".

Secretary of State

By: Nicole Martinez

RESTAURANT LEASE

BY AND BETWEEN

RCB NORTH 1, LLC

“LANDLORD”

AND

HRARG DH CHEYENNE WY, LLC

“TENANT”

Effective Date: _____, 2021

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<u>EXHIBIT A</u>	–	DESCRIPTION OF PREMISES
<u>EXHIBIT B</u>	–	LEASED PREMISES
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<u>EXHIBIT G</u>	–	LEASE ADDENDUM – DOG HAUS

RESTAURANT LEASE AGREEMENT

THIS RESTAURANT LEASE AGREEMENT (this "***Lease***"), effective for all purposes as of _____, 2019 is entered into by and between RCB NORTH 1, LLC, a Utah limited liability company ("***Landlord***"), and HRARG DH Cheyenne WY, LLC, an Arizona limited liability company ("***Tenant***").

SUMMARY OF CERTAIN LEASE PROVISIONS

The following summary is qualified in its entirety by, and should be read in conjunction with, the more detailed information appearing elsewhere in this Lease. Cross-references have been provided for convenience and designate some, but not necessarily all, of the other Articles where references appear in the table below. In the event that any term or condition set forth in the summary below conflicts with any Article in this Lease, then the terms and conditions set forth in the Articles shall control.

Summary Item	Description	Cross Reference
A.	LANDLORD: RCB North 1, LLC	Introduction
B.	TENANT: HRARG DH Cheyenne WY, LLC	Introduction
D.	PREMISES: Lot 8, Block 1, North College Drive, Cheyenne, Wyoming	Exhibit A
E.	ESTIMATED RENT COMMENCEMENT DATE: June 1, 2021	2.1
F.	TERM: 20 Lease Years	2.1; 2.2
G.	RENEWAL OPTIONS: 3, 5-year options	2.2
H.	BASE RENT: \$175,000 per Lease Year (\$14,583.33 per month), subject to the escalation provisions herein.	3.2
I.	ADDITIONAL RENT: Per Section 3.3	3.3
J.	USE: Dog Haus Restaurant	2.3
K.	TENANT IMPROVEMENTS: Exhibit D	4

TERMS AND CONDITIONS

ARTICLE 1. PREMISES

1.1 **Identification of Premises.** In consideration of the rents, covenants, and agreements contained herein, Landlord leases to Tenant and Tenant leases from Landlord that certain restaurant located at Lot 8, Block 1, North College Drive, Cheyenne, Wyoming, as more particularly identified on **Exhibit A** (the "***Premises***"). The building in which the Premises are located (and constituting a portion of the Premises), with the street address set forth on **Exhibit A** attached hereto, is sometimes referred to hereinafter as the "***Building***."

1.2 **Size.** The Premises estimate that the Building will consist of a floor area of approximately 2,828 rentable square feet as generally set forth on the site plan attached hereto as **Exhibit B**. The purpose of the attached **Exhibit B** is to show the approximate location of the Premises in the Building only, and is not meant to constitute an agreement as to the construction of the Premises, the location or elements thereof or the location of the access-ways to the Premises or the Building.

ARTICLE 2. TERM AND USE

2.1 **Rent Commencement Date and Term.** The initial term (the "***Initial Term***") of this Lease shall be for a period of 20 Lease Years (defined below) beginning on the Rent Commencement Date and ending at midnight on the last day of the last full Lease Year in the Term. For purposes of this Lease, "***Rent Commencement Date***" means the date that is the earlier of (i) ten (10) days after issuance of a certificate of occupancy for the Premises, and (ii) the date Tenant opens for business. For purposes of this Lease, "***Lease Month***" means each consecutive one-month period commencing on the Rent Commencement date, and a "***Lease Year***" means a period of 12 Lease Months. Landlord shall use its commercially reasonable efforts to cause to achieve Substantial Completion of the Improvements within 120 days of the date of the physical on-site commencement of construction of the Improvements at the Premises. If Substantial Completion does not occur within 120 days of the date of the physical on-site commencement of construction of the Improvements at the Premises due to any cause other than force majeure or Tenant Delay, then Tenant shall receive a day-for-day credit of Base Rent for each day of delay. If Substantial Completion does not occur within 150 days of the date of the physical on-site commencement of the Improvements at the Premises due to any cause other than force majeure or Tenant Delay, then Tenant shall receive a credit of Base Rent equal to the number of days beyond 150 multiplied by 2 plus any prior accrued credit. As used herein, "***Tenant Delay***" shall mean any delay in Substantial Completion caused by (i) Tenant's changes in any drawings, plans or specifications for the Improvements, (ii) Tenant's or Tenant's franchisors' failure to promptly respond to information and requests of Landlord, and (iii) any other act or omission of Tenant under this Lease.

2.2 **Renewal Options.** Provided Tenant is not in default of any material term, condition or covenant contained in this Lease, Tenant shall have the option to extend the Initial Term for three (3) additional renewal terms of five (5) Lease Years each (each, a "***Renewal Term***," and together with the Initial Term, the "***Term***" or the "***term***") on the same terms and conditions as provided herein. Notice of the exercise of such option to renew shall be given by Tenant to Landlord, in writing, no later than 180 days before the expiration of the then existing term. The written notice to Landlord shall unequivocally state that the Lease has been extended and shall be given in accordance with the provisions of **Article 27** of this Lease.

2.3 **Use.** The Premises are leased to Tenant and Tenant shall only use the Premises for the operation of a Dog Haus restaurant selling hot dogs, sausages, hamburgers, chicken, alcoholic or malt beverages, and other food and drinks typical of a Dog Haus restaurant. Tenant shall not use the Premises for any purposes other than those enumerated in the preceding sentence without the prior written consent of Landlord, not to be unreasonably withheld, conditioned or delayed. Tenant will keep the Premises in a clean and orderly condition, free of objectionable noise, odors or nuisances.

ARTICLE 3. RENT; ADDITIONAL RENT AND IMPOSITIONS

3.1 **General.** The Base Rent, as defined below, and all Additional Rent, as also defined below (Base Rent and Additional Rent are sometimes collectively referred to herein as "***Rent***") shall be payable commencing on the Rent Commencement Date. If the Base Rent shall be determined for a period less than a full Lease Month, then

the Base Rent for such period shall be prorated accordingly. All payments of Rent and other sums shall be made in lawful monies of the United States and paid or mailed to the address for Landlord in accordance with the provisions of Article 27 of this Lease or my wire transfer as agreed upon in writing by the Landlord and Tenant. Landlord may designate, in writing any other payee or address to which Tenant shall pay the Base Rent, in its sole discretion. Rent due during each Lease Year shall be payable without demand, set-off or deduction, in equal monthly installments, and the initial payment of Rent shall be due and payable on or before the Rent Commencement Date, and each payment of Rent thereafter shall be due and payable on the first of each Lease Month thereafter.

3.2 Base Rent. Tenant shall pay to Landlord, for the use and occupancy of the Premises, at the times and in the manner provided in this Lease, the following amounts. The base rent (the "**Base Rent**") for the first Lease Year will be \$175,000.00. Beginning on the fifth (5th) annual anniversary of the Rent Commencement Date and on each subsequent fifth (5th) annual anniversary thereafter during the Lease Term, the Base Rent shall increase by ten percent (10%) of the Base Rent during the prior 5-year period. Landlord and Tenant shall enter into a rent commencement certificate in the form attached hereto as Exhibit C attached hereto (the "**Rent Commencement Certificate**").

3.3 Additional Rent; Impositions; Utilities.

a. *Additional Rent.* In addition to Base Rent, Tenant shall pay to Landlord, for the use and occupancy of the Premises, all additional amounts required to be paid by Tenant to Landlord hereunder, whether designed as "Additional Rent" hereunder or not. All amounts payable by Tenant to Landlord hereunder are referred to herein as "**Additional Rent**." Except as otherwise described herein, Additional Rent shall be payable the same time as the payment of Base Rent.

b. *Impositions.*

i. During the Term of this Lease, Tenant shall pay or shall cause to be paid all Impositions directly to the governmental authority charged with the collection thereof. Each Imposition, or installment thereof during the Term shall be paid not later than seven (7) days prior to the due date thereof. However, if, by law, any Imposition may at the option of the taxpayer be paid in installments (whether or not interest shall accrue on the unpaid balance of such Imposition), Tenant may exercise the option to pay the same in such installments and shall be responsible for the payment of such installments only, together with applicable interest, if any, provided that all such installment payments together with applicable interest, if any, relating to periods prior to the expiration of the Term shall be made prior to the expiration of the Term. Tenant shall promptly notify Landlord if Tenant shall have elected to pay any such Imposition in installments.

ii. Tenant shall, within seven (7) days following each due date, furnish to Landlord official receipts of the appropriate governmental authority, or other evidence reasonably satisfactory to Landlord, evidencing the payment of such Impositions.

iii. Tenant shall not be required to pay municipal, state or federal income, gross receipts, inheritance, estate, succession, profit, capital or transfer gains taxes of Landlord, or any corporate franchise tax imposed upon Landlord or any transfer or gains tax imposed on Landlord.

iv. Any Imposition relating to a period, a part of which is included within the Term and a part of which is included in a period of time before the Rent Commencement Date or after the expiration of the Term (whether or not such Imposition shall be assessed, levied, confirmed, imposed upon or in respect of or become a lien upon the Premises, or shall become payable, during the Term), shall be apportioned between Landlord and Tenant as of the Rent Commencement Date or expiration of the Term, as the case may be, so that Tenant shall pay only that portion of such Imposition which that part of such fiscal period included in the period of time after the Rent Commencement Date or before the expiration of the Term bears to such fiscal period, and Landlord shall pay the remainder thereof. Other than in respect of Impositions relating, in part, to a period of time before the Commencement Date, no such apportionment of Impositions shall be made if this Lease is terminated as the result of an Event of Default.

c. Utilities. Notwithstanding the payment of Additional Rent, Tenant is also solely obligated to pay for Tenant's use of utilities regarding the Premises, which Landlord shall ensure shall be separately metered, during the Term (as more particularly set forth in Article 14 below). If requested by Landlord, Tenant will pay such utilities directly to the applicable governmental authority or directly to the applicable utility. Tenant shall pay all utility fees, including but not limited to hook-up.

3.4 Fee Mortgage. If the Premises are encumbered by a Fee Mortgage, the following shall apply: (a) if any Fee Mortgagee requires that amounts (estimated and/or actual) necessary to pay any Impositions and/or insurance premiums be deposited with it in advance (which right, if any, shall be subject to the rights of a Leasehold Mortgagee), Tenant, upon at least seven (7) days' prior written notice from Landlord, shall pay the amounts so required to the Fee Mortgagee in accordance with the requirements of such Fee Mortgagee and such payments shall constitute full satisfaction of Tenant's obligations hereunder with respect to the amounts paid to the Fee Mortgagee; (b) if any Imposition for which such payment is timely made to the Fee Mortgagee is not paid when due, Landlord (and not Tenant) shall take such steps as are necessary to cause the same to be paid, unless Tenant has been instructed in writing by Landlord to pay such Imposition directly to the Fee Mortgagee; and (c) if any Imposition for which such payment has been made to the Fee Mortgagee becomes delinquent, Tenant may, but is not obligated to, pay the same and deduct the amount of such payment, plus any interest and penalties and any other reasonable expenses of Tenant incurred in connection therewith, from the next installment or installments of Rent.

3.5 Absolute Net Lease. Landlord and Tenant agree and hereby acknowledge that this Lease is intended to be an absolute net lease, meaning that once Landlord has performed its obligations relative to construction of the Improvements and all costs of Impositions, costs incurred for repairing, maintaining and insuring the Premises hereunder, and the costs of keeping the Premises and Improvements in compliance with all laws, regulations and covenants applicable thereto, including without limitation payment of taxes, assessments, and any other charges related to or imposed on the Premises by a governmental or other valid authority with jurisdiction over the Premises, shall be the sole and exclusive obligation of Tenant. Unless caused by the negligence or misconduct of Landlord or its agents, for the avoidance of doubt, Landlord shall have no obligation to the repair, maintain, or replace any improvement, including the Building, on or in the Premises, except insofar as such repairs, maintenance or replacement are covered by the warranties provided by contractors, manufacturers, and suppliers, in which case Landlord shall assign, without recourse and to the extent allowable by law, such warranties to Tenant. Tenant shall be responsible for all repairs, maintenance and replacements necessary to keep the Premises in good condition, repair and legally/administratively compliant, including, without limitation, the slab, foundation, structural walls, roof structure and covering and all HVAC equipment.

3.6 Certain Definitions. The following terms shall have the respective meanings ascribed thereto:

"Impositions" shall mean any and all: (a) property taxes of every kind and nature (including any school, county, city, town or other taxes); (b) real property assessments (whether general, special, business improvement district or otherwise); (c) personal property taxes; (d) occupancy and rent taxes; (e) water, water meter and sewer rents, rates and charges; (f) excises; (g) levies; (h) license and permit fees; (i) service charges with respect to police protection, fire protection, street and highway construction, maintenance and lighting, sanitation and water supply, if any; (j) fines, penalties and other similar or like governmental charges applicable to the foregoing and any interest or costs with respect thereto; and (k) any and all other governmental levies, fees, rents, assessments or taxes and charges, general and special, ordinary and extraordinary, foreseen and unforeseen, of any kind and nature whatsoever, and any interest or costs with respect thereto, which at any time during the Term are, or, if the Premises or any part thereof or the owner thereof were not exempt therefrom, would have been: (i) assessed, levied, confirmed, imposed upon or would have become due and payable out of or in respect of, or would have been charged with respect to, the Premises or any document to which Tenant is a party creating or transferring an interest or estate in the Premises (excluding any capital gains taxes imposed in connection with the execution of this Lease), or the use and occupancy thereof by Tenant; or (ii) encumbrances or liens on: (A) the Premises; or (B) the sidewalks or streets in front of or adjoining the Premises; or (C) any vault (other than a vault in respect of which a utility company is obligated to pay any charge specified above or which is exempt from any such charge by reason of use thereof by any such utility company), passageway or space in, over or under such sidewalk or street; or (D) any other appurtenances of the Premises; or (E) any personalty used in the operation thereof; or (F) the Rent (or any portion thereof).

“Fee Mortgage” shall mean any financing obtained by Landlord, as evidenced by any mortgage, deed of trust, assignment of leases and rents, financing statement or other instruments, and secured by the interest of Landlord in the Premises, including any extensions, modifications, amendments, replacements, supplements, renewals, refinancings and consolidations thereof.

“Fee Mortgagee” shall mean the holder of a Fee Mortgage.

ARTICLE 4. IMPROVEMENTS

Landlord agrees to provide tenant with certain tenant improvements (the ***“Improvements”***), all as set forth on **Exhibit D** hereto. The respective obligations of Landlord and Tenant with respect to the Improvements are set forth on **Exhibit D** hereto. Upon substantial completion of the Improvements and issuance of a certificate of occupancy (***“Substantial Completion”***), Tenant shall conduct a walk-through inspection of the Premises with Landlord or Landlord’s representative, and shall compile a list of items which remain to be completed (the ***“Punch-list”***) which do not materially interfere with Tenant’s use of the Premises. Tenant will inspect and provide the Punch-list to Landlord within seven (7) business days following the walk-through inspection. Landlord shall complete the Punch-list items with commercially reasonable diligence not to exceed thirty (30) calendar days. Upon completion of the Improvements and the Punch-list, Landlord shall assign all warranties to Tenant to which Landlord may have rights applicable to the Premises or any portion thereof provided by any manufacturers, designers and constructors of the Premises or any portion thereof. Landlord agrees to take such other actions as may be necessary to effectuate such assignment of warranties to Tenant.

ARTICLE 5. SUBORDINATION, ESTOPPEL CERTIFICATE AND ATTORNMEN; MORTGAGES

5.1 **Subordination and Attornment.** Tenant shall, at the request of Landlord, execute a Subordination and Attornment Agreement (***“SAA”***) in commercially reasonable form delivered to Tenant by Landlord, providing that, among other things, Tenant will, in writing, subordinate its rights hereunder to the interest of any ground lessor of the Building in which the Premises is situated and to the lien of the mortgage or deed of trust of any lender encumbering the land and improvements of which the Premises is a part, and upon any improvements hereafter placed upon the land of which the Premises is a part and to all advances made or to be made upon the security thereof. Provided that the applicable lender executes the SAA referred to above, Tenant agrees and acknowledges that this Lease is subordinate to the lien of any mortgage or deed of trust of such lender or ground lessor and if such lender or ground lessor succeeds to the interests of Landlord under this Lease, then, at such lender’s or lessor’s election (a) Tenant shall be bound to such lender under all of the terms, covenants and conditions of this Lease for the remaining balance of the term hereof, with the same force and effect as if such lender were the lessor hereunder, and Tenant does hereby agree to attorn to such lender as its lessor without requiring the execution of any further instruments immediately upon such lender succeeding to the interests of Landlord under this Lease. Tenant agrees to execute and deliver to such lender any instrument reasonably requested by it to evidence such attornment; and (b) subject to the observance and performance by Tenant of all the terms, covenants and conditions of this Lease on the part of Tenant to be observed and performed, such lender shall recognize the leasehold estate of Tenant under all of the terms and conditions of this Lease for the remaining balance of the term with the same force and effect as if such lender were the lessor under this Lease. In the event any proceedings are brought for foreclosure, or in the event of the exercise of the power of sale under any mortgage or deed of trust, upon any such foreclosure or sale, Tenant agrees to recognize such beneficiary or purchaser as Landlord under this Lease, provided Tenant’s rights under this Lease continue unabated.

5.2 **Fee Mortgages.** Landlord may mortgage its fee interest in the Premises.

5.3 **Leasehold Mortgages.**

a. Tenant, and every permitted successor and assign of Tenant, shall have the right to encumber its interest in this Lease, with Landlord’s prior written consent, not to be unreasonably withheld, conditioned or delayed, under any one or more Leasehold Mortgages, provided, however, that all rights acquired under the Leasehold Mortgage(s) shall be subject to each of the provisions set forth in this Lease and to all rights and interests of the Landlord therein. Landlord further consents to any encumbrance of Tenant’s interest in this Lease resulting

from the refinancing of the indebtedness initially secured by the Approved Leasehold Mortgage (the “*Refinanced Approved Leasehold Mortgage*”). If, from time to time, Tenant or Tenant’s permitted successors or assigns shall encumber this Lease with a Leasehold Mortgage, and if the Leasehold Mortgagee delivers to Landlord an executed counterpart of such Leasehold Mortgage, together with each assignment thereof certified by the holder of the Leasehold Mortgage to be true together with written notice specifying the name and address of the Leasehold Mortgagee and the pertinent recording data with respect to the Leasehold Mortgage, Landlord agrees that, anything in this Lease to the contrary notwithstanding, from and after the date of receipt by Landlord of such notice and for the duration of such Leasehold Mortgage, the provisions of this Article 5 shall apply.

b. Landlord agrees that in the event of a termination of this Lease by reason of any default by Tenant, or if Tenant rejects the Lease in a bankruptcy proceeding, and subject to the rights herein granted to Leasehold Mortgagee, Landlord will enter into a lease (the “*Mortgagee Lease*”) of the Premises with the Leasehold Mortgagee for the remainder of the Term effective as of the date of termination, at the same Rent and upon the same terms, provisions, covenants and agreements as contained in this Lease, provided:

i. Leasehold Mortgagee shall make written request upon Landlord for the execution of such a Mortgagee Lease within five (5) days after the date of termination and shall, within seven (7) days after its receipt from Landlord of a written statement of all sums then due to Landlord under this Lease, pay to Landlord all such sums.

ii. Leasehold Mortgagee shall pay to Landlord at the time of the execution and delivery of the Mortgagee Lease any sums that at the time of its execution and delivery would be due pursuant to this Lease but for the termination, and in addition, all reasonable attorney’s fees and expenses which Landlord shall have actually incurred.

iii. Leasehold Mortgagee shall perform and observe all covenants contained in the Mortgagee Lease on Tenant’s part to be performed during such period of time commencing with the date of the execution of the Mortgagee Lease and terminating upon the expiration or earlier termination of the Mortgagee Lease or the abandonment or surrender of possession of the Premises under the Mortgagee Lease and shall further remedy any other conditions that Tenant was obligated to perform under the terms of this Lease.

iv. Leasehold Mortgagee, as Tenant under the Mortgagee Lease, shall have the same right, title and interest in and to the Premises and the right to use the Improvements thereon as Tenant had under this Lease.

ARTICLE 6. CONDITION OF PREMISES

Tenant accepts the Premises in its present “AS IS” condition, without warranty or representation of Landlord of any kind or nature whatsoever, express or implied, except as stated herein. Tenant represents and warrants that it has inspected the Premises prior to the execution of this Lease and that the condition and construction of the Premises is acceptable to Tenant hereunder.

ARTICLE 7. REPAIRS AND MAINTENANCE

Except as otherwise specifically set forth herein, Tenant shall, at its sole cost and expense, maintain the entire Premises, including, but not limited to, the Restaurant and any other improvements now or hereafter existing therein or thereon, in good condition and at all times to the conditions required and/or prescribed by Landlord. Tenant’s obligation to maintain and repair includes specifically, but is not to be limited to, the maintenance and repair and/or replacement of the following: fixtures, facilities or equipment contained inside the Premises, the heating, air-conditioning, electrical and plumbing systems inside the Premises; exterior and interior doors; roof, windows and glass; parking area, landscaped areas and any signs or other equipment installed and used by Tenant. Tenant shall make such replacements of any of the foregoing as may become reasonably necessary during the term of this Lease or any extension thereof. The provisions of this Article 7 shall not apply in the case of damage or destruction by fire or other casualty within two (2) years of the end of the initial term of this Lease, or any extension thereof, or in the case of eminent domain, in which events the obligations of Tenant shall be controlled by either Article 16 or Article 25 hereof, as the case may be. In carrying out its obligations as set forth above in this Article 7, Tenant agrees to

conform to all requirements of law, the regulations of applicable public authorities, and the requirements of insurers. Further, Tenant shall not take any action nor permit any action to be taken which would result in or cause the loss, termination or forfeiture of any easement right appurtenant to the Premises or which would result in the violation of any covenants, conditions or restrictions burdening the Premises

Tenant shall also be responsible to pay all janitorial and cleaning costs to keep the Premises clean and free of debris. If repairs for which the Tenant is responsible are not completed within ten (10) days after Tenant has received written notice from Landlord of such state of disrepair or if such repairs cannot reasonably be completed within such ten (10) day period and Tenant shall fail to commence such repairs within ten (10) days after notice and proceed diligently thereafter, then Landlord may perform such repairs and charge the actual cost thereof to Tenant as Additional Rent. Notwithstanding anything herein to the contrary, Landlord shall be responsible for all maintenance and repairs necessary as a result of the gross negligence or willful misconduct of Landlord, its employees, agents, contractors and representatives.

ARTICLE 8. ENVIRONMENTAL MATTERS

8.1 Warranties of Tenant and Indemnification of Landlord. For purposes of this Lease, the term "**Hazardous Materials**" shall mean any hazardous or toxic substance or any substance which is or becomes regulated by any governmental authority, including without limitation any substance which is (a) defined as a "Hazardous Substance," "Hazardous Waste," or "Extremely Hazardous Substance" pursuant to any provision of the United States Code, including United States Code sections commonly known as the Federal Water Pollution Control Act, the Federal Resource Conservation and Recovery Act, the Comprehensive Environmental Response Compensation and Liability Act, and the Superfund Amendments and Reauthorizations Act of 1986, (b) defined as a hazardous substance or material pursuant to any state or local law, ordinance or regulation governing the Premises ("**Hazardous Material Law**"), (c) petroleum or a petroleum by-product, (d) asbestos or asbestos containing material, (e) a pesticide, (f) a polychlorinated biphenyl, or (g) or any other substance known to cause cancer or other illnesses. Tenant shall indemnify, defend and hold Landlord and its officers, managers, members, shareholders, employees, agents, successors and assigns harmless from, and Landlord shall have no liability for or responsibility to pay, any claims, judgments, damages, fines, penalties, costs, liabilities (including sums paid in settlement of claims) or loss including attorney's fees, consultant's fees, and expert fees which arise during or after the Term in connection with the presence of Hazardous Materials in, on or under the Building, including, but limited to the Premises, related in any way, in whole or in part, to the activities of Tenant, unless and to the extent the presence of such Hazardous Materials is caused by Landlord, its officers, employees or agents. Also,

a. Tenant warrants that it shall not cause any Hazardous Materials to be used, generated, stored or disposed of on, under or about, or transported to or from the Premises or the Building, unless the same is specifically approved in advance by Landlord, in writing, other than small quantities of retail, household and office chemicals customarily sold over-the-counter to the public and which are related to Tenant's permitted uses of the Premises and which are used and disposed of in compliance with all Hazardous Material Law or other applicable law;

b. Tenant warrants that it shall comply with all obligations imposed by Hazardous Material Law, any other applicable law, environmental laws and all other restrictions and regulations upon the use, generation, storage or disposal of Hazardous Materials at, to or from the Premises;

c. Tenant warrants that it shall deliver promptly to Landlord true and correct copies of all notices received by Tenant from any governmental authority with respect to the use, generation, storage or disposal by Tenant of Hazardous Materials at, to or from the Premises or Building and shall immediately notify Landlord both by telephone and in writing of any unauthorized discharge of Hazardous Materials by Tenant that Tenant reasonably believes poses an imminent hazard to the Premises, the Building, the public or the environment;

d. Tenant shall complete fully, truthfully and promptly any questionnaires sent by Landlord with respect to Tenant's use of the Premises and its use, generation, storage and disposal of Hazardous Materials at, to or from the Premises, which are reasonably required;

e. If Landlord conducts any environmental inspections because it has reasonable cause to believe that Tenant's activities have or are likely to result in a violation of Hazardous Material Law or any other applicable law or a release of Hazardous Materials on the Premises or the Building and such violation by Tenant has actually occurred, then Tenant shall pay to Landlord, as Additional Rent, the costs incurred by Landlord for such inspections;

f. Tenant shall cease immediately upon written notice from Landlord any activity which violates any Hazardous Material Law or any other applicable law; and

g. After notice to and approval by Landlord, which approval shall not be unreasonably withheld, Tenant shall promptly remove, clean up, dispose of or otherwise remediate, in accordance with Hazardous Material Law, or any other applicable law and good commercial practice, any Hazardous Materials on, under or about the Premises resulting from Tenant's acts on the Premises.

The foregoing indemnifications of Tenant shall survive any assignment, transfer or termination of this Lease.

8.2 Warranties of Landlord and Indemnification of Tenant. Landlord represents and warrants to Tenant that, to its knowledge, there does not exist on the Premises or the land upon which the Building is located any Hazardous Materials except as stated in any report provided by Landlord to Tenant. Landlord shall indemnify, defend and hold Tenant and its officers, managers, members, shareholders, employees and agents harmless from, and Tenant shall have no liability for or responsibility to pay, any claims, judgments, damages, fines, penalties, costs, liabilities (including sums paid in settlement of claims) or loss including attorney's fees, consultant's fees, and expert fees which arise from the use or release of Hazardous Materials on the Premises before Tenant's occupancy of the Premises, except to the extent such use or release was caused by the activities of Tenant or its employees or invitees.

ARTICLE 9. ALTERATIONS TO PREMISES

Tenant shall not make any material exterior or structural alterations in any portion of the Premises, nor any alterations in the storefront or the exterior of the Premises without, in each instance, first obtaining the express written consent of Landlord, which may be withheld in Landlord's sole and absolute discretion. All alterations, additions and improvements made by Tenant to or upon the Premises, except for Tenant's Property (defined below), shall at once when made or installed or be deemed to have been attached to the Premises and to have become the property of Landlord; provided, however, if prior to termination of this Lease, or thirty (30) days thereafter, Landlord so directs by written notice to Tenant, Tenant shall promptly remove the additions, improvements, or fixtures and shall repair any damage occasioned by removal of additions, improvements, or fixtures and in default thereof Landlord may effect said removal and repairs at Tenant's sole expense.

ARTICLE 10. FIXTURES AND PERSONAL PROPERTY

Any trade fixtures, business equipment, inventory, trademarked items, signs, counters, shelving, showcases, mirrors and other personal property installed in or on the Premises by Tenant at its expense and which may be removed without material damage to the Premises (collectively "*Tenant's Property*"), shall remain the property of Tenant. Landlord agrees that Tenant shall have the right, at any time or from time to time, to remove any and all of Tenant's Property. Tenant at its expense shall immediately repair any damage occasioned by the removal of Tenant's Property and upon expiration or earlier termination of this Lease, shall leave the Premises in a neat and clean condition, free of debris, normal wear and tear expected. Notwithstanding Tenant's payment of Additional Rent, Tenant shall pay before delinquency all taxes, assessments, license fees and public charges levied, assessed or imposed upon its business operation in the Premises as well as upon Tenant's Property, or upon the Premises. If any such items of property are assessed with property of Landlord, then such assessment shall be equitably divided between Landlord and Tenant to the end that Tenant shall pay only its equitable portion of such assessment. Landlord shall reasonably determine the basis of so prorating any such assessments and such determination shall be binding upon both Landlord and Tenant.

ARTICLE 11. SIGNAGE

Tenant may place (i) permanent signage referring to its operating business conducted on or about the Premises, and (ii) such temporary advertising or other signage as is in compliance with the applicable laws, regulations and/or ordinances of applicable governmental authorities and the reasonable signage rules and regulations promulgated by Landlord from time to time. All signage shall be at the sole cost and expense of Tenant, and Tenant shall maintain all signage in good condition and repair. Notwithstanding the preceding, in no circumstance shall Tenant place any balloon or similar temporary promotional advertisements on or about the exterior of the Premises without Landlord's prior written consent, not to be unreasonably withheld, conditioned or delayed.

ARTICLE 12. LIENS

Tenant shall not permit to be created nor to remain undischarged any lien, encumbrance or charge arising out of any work or work claim of any contractor, mechanic, laborer of Tenant or material supplied by a materialman to Tenant which might be, or become, a lien or encumbrance or charge upon the Premises or the Building. If any lien or notice of lien on account of an alleged debt of Tenant or any notice of contract by a party engaged by Tenant or Tenant's contractor to work in the Premises shall be claimed against the Premises or the Building, Tenant shall, within thirty (30) days after notice of the claim, cause the same to be discharged of record by payment, deposit or bond. Tenant's failure to do so shall constitute a default under this Lease and Landlord shall have the remedies available in Article 21 of this Lease.

ARTICLE 13. LAWS AND ORDINANCES

13.1 Compliance. Tenant agrees to comply with all laws, ordinances, orders and regulations regarding Tenant's use, occupancy or alteration of the Premises, or the cleanliness, safety or operation thereof. Tenant agrees to comply with the reasonable regulations, requirements, or recommendations with respect to the use, occupancy or alteration of the Premises or the cleanliness, safety or operation thereof made or issued by any insurance underwriter, inspection bureau or similar agency that may affect the insurance coverage for the Premises, provided such regulations, requirements, or recommendations do not significantly and unreasonably affect Tenant's use of the Premises. Tenant also agrees to permit Landlord to comply with such regulations, recommendations requirements with respect to any portion of the Premises maintained by Landlord.

13.2 Illegal and Improper Use; Nuisance. Tenant agrees not to (i) permit any illegal practice to be carried on or committed on the Premises; (ii) make use of or allow the Premises to be used for any purpose that might invalidate or increase the rate of insurance therefor; (iii) keep or use or permit to be kept or used on the Premises any flammable fluids, gases, or explosives without the prior written permission of Landlord except for normal cleaning products; (iv) use the Premises for any purpose whatsoever which might create a nuisance; (v) deface or injure the Premises or the Building; (vi) overload the floor; (vii) commit or suffer any waste; or (viii) install any electrical equipment that overloads lines.

13.3 Electrical Equipment. In connection with any electrical equipment on the Premises, Tenant shall, at Tenant's own expense, make from time to time whatever changes are reasonably necessary to comply with the requirements of the insurance inspectors, underwriters, government authorities and codes.

13.4 ADA. Tenant shall comply with the Americans with Disabilities Act of 1990 ("**ADA**") and the regulations promulgated thereunder. Tenant hereby expressly assumes all responsibility for compliance with the ADA relating to the interior, non-structural portions of the Premises and Tenant's specific use of the Premises. Any alterations to the interior, non-structural portions of the Premises made by Tenant for the purpose of complying with the ADA or which otherwise require compliance with the ADA shall be done in accordance with the provisions of this Lease; provided, that the Landlord's consent to such alterations shall not constitute either Landlord's assumption, in whole or in part, of Tenant's responsibility for compliance with the ADA, or representation or confirmation by Landlord that such alterations comply with the provisions of the ADA.

Tenant shall be responsible for the costs and expenses arising from or relating to ADA compliance of the exterior of the building in which the Premises are located including, but not limited to, the parking areas, walks, signage and access to the Premises.

ARTICLE 14. SERVICES

14.1 Payment. Tenant shall be solely responsible for and shall promptly pay all charges for the use and consumption of sewer, gas, electricity, water, phone and all other utility services used within the Premises, including all connection fees and meter installation costs for said utility services.

14.2 Garbage Collection. Tenant shall obtain and pay for its own service for the collection and disposal of refuse and garbage.

14.3 Interruption of Services. Landlord shall not be liable to Tenant in damages or otherwise if the said utilities or services are interrupted or terminated because of necessary repairs, installations, improvements, problems outside the Building, or any cause beyond Landlord's reasonable control, and not directly or indirectly attributable to the negligence of or breach of this Lease by Landlord or its agents, nor shall any such interruption or termination of utility service relieve Tenant of the performance of any of its obligations hereunder unless directly or indirectly attributable to the negligence of breach of this Lease by Landlord or its agents.

14.4 Additional Utility Facilities. If any equipment installed by Tenant requires additional utility facilities the same shall be installed at Tenant's expense in compliance with all code requirements and plans and specifications, which must be approved in writing by Landlord.

14.5 Landlord's Responsibility. Landlord shall ensure that all utility connections, meters and services applicable to the Premises are installed prior to Tenant's occupancy of the Premises.

ARTICLE 15. PARKING AND ACCESS

Tenant shall be provided with the right to use parking areas and driveways, and means of ingress and egress to the Building, sufficient to satisfy governmental and ADA requirements. Tenant shall have access to all parking spaces located on the Premises.

ARTICLE 16. DAMAGE TO PREMISES

In the event that the Premises are damaged or destroyed by fire or other casualty or Tenant is evicted from the Premises by a public authority to preserve the public safety, this Lease shall not terminate, nor shall the liability of Tenant to pay rent cease or be reduced, but Tenant shall restore, replace or rebuild the Premises at Tenant's sole cost and expense with all reasonable speed to the same condition as existed prior to the happening of the fire, eviction or other casualty. In the event Tenant is required to so restore, replace or rebuild as aforesaid, Tenant shall be entitled to the proceeds of casualty insurance (if any) payable by virtue of the event or events causing damage to the Premises. Notwithstanding the foregoing, in the event the Premises are damaged or destroyed within 2 years of the end of the initial term of this Lease, or any extension thereof rendering the Premises unusable for the intended purpose, and same cannot be repaired or restored (in Tenant's reasonable opinion) within six (6) months of the date of such damage or destruction, Tenant shall have the right to terminate this Lease and all proceeds of insurance attributable to the building and land shall be delivered to Landlord.

ARTICLE 17. INSURANCE

17.1 Casualty Insurance. During the entire term of this Lease, Tenant shall maintain the following insurance regarding the Premises and for the benefit of Landlord (collectively, the "**Insurance**"), and shall in all events name Landlord, and its Lender if any, as an additional insured and/or loss payee, as applicable, as its respective interests may appear. Tenant shall, at the Tenant's sole cost and expense, maintain and keep in force and effect fire, extended coverage and such other casualty insurance as Landlord may specify insurance, including but not limited to earthquake and flood, with a policy benefit at least equal to the full replacement value of all improvements located on the Premises. At Landlord's election, Landlord may obtain such insurance and require Tenant to reimburse Landlord for all premiums and out-of-pocket costs incurred by Landlord in relation thereto as "Additional Rent." Tenant shall maintain insurance on the Premises at an amount equal to 100% of its replacement value. Tenant shall purchase and

maintain business interruption insurance to include coverage for a period of interruption of not less than 12 months. The policy shall provide that: (a) such insurance shall be primary coverage without reduction or right of offset or contribution on account of any insurance provided by Landlord to itself or its officers, officials or employees; (b) such insurance shall not be altered or cancelled without 30 days' written notice to Landlord; such insurance shall name Landlord as an additional insured; (d) any Fee Mortgagee and Leasehold Mortgagee shall be named as: (i) a loss payee or mortgagee on Tenant's property damage insurance policy under a standard mortgagee clause; and (ii) an additional insured on Tenant's liability insurance policies. The insurance policies purchased by Tenant must be issued by a company authorized to conduct business in the State or by a company acceptable to the Landlord.

17.2 General Liability. In addition, Tenant shall maintain, a Tenant's sole cost and expense general public liability insurance against claims for personal injury, death or property damage occurring in, upon or about the Premises, with coverage of not less than \$1,000,000.00 in respect to injury or death of one person, not less than \$2,000,000.00 in respect one any one accident, and not less than \$1,000,000.00 in respect to property damage. All such policies of insurance shall be issued in the name of Tenant with Landlord named as an additional insured for the mutual and joint benefit and protection of the parties, and certificates evidencing such policies of insurance shall be delivered to Landlord within 10 days of binding or renewal of such policies. Upon Landlord's request, copies of such policies shall be delivered to the Landlord. Said policies of Insurance shall provide that Landlord shall be given 30 days prior written notice prior to any modification or cancellation of said policy.

17.3 No Invalidation. Tenant agrees and covenants that it will not do or permit to be done in, to, or about the Premises any act or thing which will violate, suspend, invalidate or make inoperative any insurance pertaining to any buildings, other structures or improvements now located in or upon Premises or hereafter constructed and located thereon or therein; and, further, that Tenant will not permit any buildings, other structures or improvements at any time to be put, kept or maintained on the property in the condition that the same cannot be insured in the amount of the full insurable replacement value thereof.

17.4 Delivery of Insurance Certificates. Upon the commencement of this Lease and at each policy renewal date, Tenant shall furnish to Landlord, any Fee Mortgagee and any Leasehold Mortgagee insurance certificates or renewal certificates within 10 days of binding or renewal or, if requested by Landlord, Fee Mortgagee or Leasehold Mortgagee, certified copies of policies, evidencing all insurance required to be carried by Tenant in accordance with the Lease. Such certificates or policies shall name Landlord as an insured and shall name any Fee Mortgagee and Leasehold Mortgagee as mortgagee and loss payee, in accordance with the requirements contained in this Article 17. The insurance certificate or policies, as applicable, must document that the liability insurance coverage purchased by the Tenant includes contractual liability coverage to insure the indemnity agreement as stated.

17.5 Evidence of Policy Payments. Tenant shall within 10 days of payment furnish to Landlord duplicate receipts or satisfactory evidence of the payment of all premiums on any and all insurance required to be carried by Tenant in accordance with this Lease. The insurance carrier shall give Landlord, any Fee Mortgagee and all Leasehold Mortgagees 10 days' prior notice (with respect to nonpayment of premiums) of cancellation, modification or non-renewal.

17.6 Payments for Tenant by Landlord. If Tenant fails to procure the insurance required to be procured by Tenant under this Lease, or fails to pay any premium of insurance, Impositions, or any other sum in this Lease required to be paid by Tenant (other than Rent), Landlord may, after expiration of the applicable cure period, at Landlord's option, procure on behalf of Tenant any such insurance, and pay on behalf of Tenant any such payment or payments as may be necessary. Any sum(s) so paid or expended by Landlord on behalf of Tenant shall immediately be reimbursed and paid by Tenant to Landlord, as Additional Rent, within ten (7) days after demand by Landlord.

ARTICLE 18. INTENTIONALLY DELETED

ARTICLE 19. INDEMNIFICATION

19.1 Indemnification of Landlord. Tenant shall defend, indemnify and hold Landlord harmless from and against any/and all claims, demands, liabilities, and expenses, including reasonable attorneys' fees, arising from Tenant's use of the Premises and Building or from any act permitted, or any omission to act, in or about the Premises or the Building by Tenant or its agents, employees, contractors, or invitees or from any breach or default by Tenant

of this Lease, except to the extent caused solely by Landlord's gross negligence or intentional misconduct. In the event any action or proceeding shall be brought against Landlord by reason of any such claim, Tenant shall defend the same at Tenant's expense by counsel reasonably satisfactory to Landlord.

19.2 Indemnification of Tenant. Landlord shall defend, indemnify and hold Tenant harmless from and against any and all claims, demands, liabilities and expenses, including reasonable attorneys' fees, arising solely from Landlord's operation of the Building, or from any act permitted or omission to act, in or about the Building by Landlord or its agents, employees, contractors, or invitees, or from any breach or default by Landlord of this Lease, except to the extent caused in whole or in part by Tenant's gross negligence or intentional misconduct. In the event any action or proceeding shall be brought against Tenant by reason of any such claim, Landlord shall defend the same at Landlord's expense by counsel reasonably satisfactory to Tenant.

ARTICLE 20. ASSIGNMENT, SUBLETTING AND OWNERSHIP

20.1 Tenant. Tenant may not transfer, assign or sublet its interest in this Lease without first obtaining Landlord's prior written consent, which shall not be unreasonably withheld or delayed, but which consent may be conditioned upon Tenant paying for Landlord reasonable costs, including reasonable attorneys' fees, in reviewing such assignment or sublease not to exceed \$2,500.00. Landlord's failure to consent shall not be deemed unreasonable if proposed assignee or sublessee (i) is not an existing operator of 20 or more quick service restaurants of the franchise currently operating the Demised Premises; (ii) has less than five years' experience operating quick service restaurants; and (iii) does not have a net worth equal to the greater of Tenant's net worth at the time of the Effective Date of this Lease, or Tenant's net worth 45 days prior to the request for assignment or sublessee. Any assignment or subletting shall not release Tenant from its obligations and liabilities under this Lease. Notwithstanding the foregoing, Tenant shall have the right to assign this Lease or sublet the Premises or any portion thereof to an Affiliate or a buyer, without Landlord's consent, provided that Tenant shall give Landlord prior written notice, which notice shall include the financials of such Affiliate or buyer, thereof and provided such Affiliate or buyer shall have financial strength greater than or equal to Tenant at the time this Lease is entered into by Tenant and Landlord. Affiliate shall mean any entity that Controls Tenant, any entity that Tenant Controls, or any entity under common Control with Tenant. "Control" shall mean more than 50% ownership.

20.2 Landlord. Landlord shall have the right to transfer, assign and convey, in whole or in part, any or all of the right, title and interest to the Building, provided, such transferee or assignee shall be bound by the terms, covenants and agreements herein contained, and shall expressly assume and agree to perform the covenants and agreements of Landlord herein contained.

ARTICLE 21. ACCESS TO PREMISES

Upon reasonable prior notice, Landlord or Landlord's agent shall have the right to enter the Premises during usual business hours, provided Landlord does not materially interfere with Tenant's operations to examine the same; to assist in promotion of the building and Premises of which it is a use of the Premises, to show the Premises to prospective purchasers or lessees; and to make such repairs, alterations, improvements or additions as Landlord may deem necessary or desirable, without the same constituting an eviction of Tenant in whole or in part, and the rent reserved shall in no wise abate, except as otherwise provided below. In the event of an emergency, and if Tenant shall not be personally present or permit an entry into the Premises, Landlord or Landlord's agents may forcibly enter the same without rendering Landlord or such agents liable therefor and without in any manner affecting the obligations and covenants of this Lease, except Landlord shall be responsible only for damages or injury caused by any unreasonable forcible entry or negligence. Nothing herein contained, however, shall be deemed or construed to impose upon Landlord any obligation, responsibility or liability whatever for the care, maintenance or repair of the Premises or the Building or any part thereof, except as otherwise herein specifically provided.

ARTICLE 22. DEFAULTS BY TENANT AND REMEDIES

22.1 Events of Default. The occurrence of any of the following shall constitute a material default and breach of this Lease by Tenant:

a. Any failure by Tenant to pay Rent within five (5) days of when such is due, or to timely make any other payment required to be made by Tenant hereunder. In addition, if Tenant fails to make any payment not made when due or within 5 days thereof, then Tenant shall pay a late payment fee equal to 5% of the payment then due, plus accruing interest on the amount of the late payment at the rate of 12% per annum.

b. A failure by Tenant to observe and perform any material provision of this Lease to be observed or performed by Tenant, other than a failure to pay Rent, where such failure continues for 10 days after written notice thereof by Landlord to Tenant; provided, however, if cure thereof reasonably takes longer than 10 days, this period shall automatically be extended as long as Tenant commences the cure promptly within said 10 day period and thereafter continues to diligently prosecute completion.

c. The making by Tenant of any general assignment for the benefit of creditors, the filing by or against Tenant of a petition to have Tenant adjudged a bankrupt, or a petition for reorganization or arrangement under any law relating to bankruptcy (unless, in the case of a petition filed against Tenant, the same is dismissed within 60 days the appointment of a trustee or receiver to take possession that is not restored to Tenant within 30 days, or the attachment, execution or other judicial seizure that is not discharged within 30 days.

22.2 **Remedies.** In the event of any uncured default by Tenant, then Landlord shall be entitled to the following cumulative remedies (in addition to any other remedies available at law or in equity):

a. Landlord may terminate this Lease by giving written notice of termination to Tenant, in which event Tenant shall immediately surrender the Premises to Landlord. If Tenant fails to so surrender the Premises, then Landlord may, without prejudice to any other remedy it has, including possession of the Premises or arrearages in Rent or other damages, re-enter and take possession of the Premises and expel or remove Tenant and any other person occupying the Premises or any part thereof, in accordance with applicable law; or

b. Landlord may re-enter and take possession of the Premises without terminating this Lease and relet the Premises and apply the Rent received to the account of Tenant. If Landlord so re-enters and takes possession of the Premises as set forth above, Landlord agrees to use reasonable efforts to relet the Premises for a commercially reasonable rate at the time of such reletting. No reletting by Landlord shall be considered to be for Landlord's own account, unless Landlord has notified Tenant in writing that this Lease has been terminated. In addition, no such reletting shall be considered an acceptance of Tenant's surrender of the Premises unless Landlord so notifies Tenant in writing; or

c. Landlord may re-enter the Premises without terminating this Lease and without being liable for any damages, unless caused by the negligence or misconduct of Landlord, and do whatever Tenant is obligated to do under this Lease. Tenant shall pay to Landlord, upon demand, the reasonable expenses paid by Landlord in satisfying Tenant's obligations under the terms of this Lease. Any sums so expended by Landlord shall bear interest at the rate of 18% per annum from the date expended until the date Landlord is repaid.

22.3 **Abandonment.** If Landlord obtains possession of the Premises as a result of Tenant's abandonment of same or by a decree from a court of competent jurisdiction, this shall not be construed as an election to terminate this Lease unless Landlord provides Tenant with a written notice of this election

ARTICLE 23. DEFAULTS BY LANDLORD

If Landlord should be in default in the performance of any of its obligations under this Lease, which default continues for a period of more than 15 days after receipt of written notice from Tenant specifying such default, or if such default is of a nature to require more than 15 days for remedy and continues beyond the time reasonably necessary to cure (and Landlord has not undertaken procedures to cure the default within such 15 day period and diligently pursued such efforts to complete such cure), Tenant may, in addition to any other remedy available at law or in equity

at its option, incur any reasonable expense necessary to perform the obligation of Landlord specified in such notice and deduct such expense from the Rent or other charges next becoming due.

ARTICLE 24. SURRENDER OF PREMISES

Tenant shall, upon the expiration of the Term granted herein, or any earlier termination of this Lease for any cause, surrender to Landlord the Premises, including, without limitation, all building apparatus and equipment then upon the Premises, and all alterations, improvements and other additions which may be made or installed by either party to, in, upon or about the Premises. Tenant may not remove its improvements to or permanent alterations of the Premises, but it may remove Tenant's property, as defined in Article 10 above.

ARTICLE 25. EMINENT DOMAIN

25.1 Termination of Lease. In the event a substantial portion of the Building or parking shall be appropriated or taken under the power of eminent domain by any public or quasi-public authority, then at the election of Landlord or Tenant upon 10 days written notice, this Lease shall terminate and expire as of the date of such taking, and both Landlord and Tenant shall thereupon be released from any liability thereafter accruing hereunder. A "substantial portion of the Building" means 20% or more of the rentable square feet of the Building.

25.2 Election Not to Terminate. If the Lease is not terminated pursuant to Article 25.1 above, Tenant shall remain in that portion of the Premises, which shall not have been appropriated or taken, and all Rent and payment obligations of Tenant shall be adjusted on an equitable basis, taking into account the relative value of the portion taken as compared to the portion remaining. For the purpose of this Article 25.2, a voluntary sale or conveyance in lieu of condemnation, but under threat of condemnation shall be deemed an appropriation or taking under the power of eminent domain.

25.3 Landlord's Right to Compensation. All compensation awarded or paid for the total or partial taking of the Premises through the exercise of the power of eminent domain shall belong to Landlord without participation by Tenant and without any deduction therefrom for any present or future estate of Tenant. No claim of Tenant made pursuant to Article 25.4 below shall diminish or otherwise adversely affect Landlord's award.

25.4 Tenant's Right to Compensation. Nothing herein shall be deemed to affect Tenant's right to receive compensation from the entity exercising its power of eminent domain for damages to Tenant's Property only.

ARTICLE 26. ATTORNEYS' FEES

In the event of any default under the terms of this Lease or any dispute regarding its terms and conditions or enforcement, the defaulting party agrees to reimburse the prevailing party for all expenses and costs, including reasonable attorneys' fees incurred in enforcing the terms hereof. Such reimbursement shall include all legal expenses incurred, whether enforcing is sought by suit or otherwise.

ARTICLE 27. NOTICES

Notices and demands required, or permitted, to be sent to those listed hereunder shall be sent by certified mail, return receipt requested, postage prepaid, or by Federal Express or other reputable overnight courier service and shall be deemed to have been given upon the date the same is postmarked, if sent by certified mail, or the day deposited with Federal Express or such other reputable overnight courier service:

Landlord:

RCB North 1, LLC
5284 S Commerce Drive, Suite C-274
Murray, Utah 84117

Tenant:

HRARG DH CHEYENNE WY, LLC
2999 N. 44th Street, Suite 400
Phoenix, Arizona 85018

or at such other address requested in writing by either party upon thirty (30) days' notice to the other party.

ARTICLE 28. REMEDIES

All rights and remedies of Landlord and Tenant herein created or otherwise extending at law are cumulative, and the exercise of one or more rights or remedies may be exercised and enforced concurrently or consecutively and whenever and as often as deemed desirable.

ARTICLE 29. SUCCESSORS AND ASSIGNS

All covenants, promises, conditions, representations and agreements herein contained shall be binding upon, apply and inure to the parties hereto and their respective heirs, executors, administrators, successors and assigns; it being understood and agreed, however, that the provisions of Article 20 are in nowise impaired by this Article 29.

ARTICLE 30. WAIVER

The failure of Landlord or Tenant to insist upon strict performance by the other of any of the covenants, conditions, and agreements of this Lease shall not be deemed a waiver of any subsequent breach or default by the other in any of the covenants, conditions and agreements of this Lease. No surrender of the Premises by Tenant shall be affected by Landlord's acceptance of Rent or by other means whatsoever unless the same is evidenced by Landlord's written acceptance of the surrender.

ARTICLE 31. HOLDING OVER

If Tenant or any party claiming under Tenant remains in possession of the Premises or any part thereof after any termination or expiration of this Lease, Landlord, in Landlord's sole discretion, may treat such holdover as an automatic renewal of this Lease for a four-week tenancy subject to all the terms and conditions provided herein, provided, however that, the Base Rent during the holdover may not exceed the then-current base rental by more than 150%.

ARTICLE 32. INTERPRETATION

The parties hereto agree that it is their intention hereby to create only the relationship of Landlord and Tenant, and no provision hereof, or act of either party hereunder, shall ever be construed as creating the relationship of principal and agent, or a partnership, or a joint venture or enterprise between the parties hereto.

ARTICLE 33. COVENANT OF TITLE AND QUIET ENJOYMENT

Landlord covenants that Tenant or any permitted assignee or sublessee of Tenant, upon the payment of the Rent and performance of the covenants hereunder, shall and may peaceably and quietly have, hold and enjoy the Premises and improvements thereon during the Term or any renewal or extension thereof. Additionally, Landlord shall take no action that will interfere with Tenant's intended usage of the Premises.

ARTICLE 34. RECORDING

Tenant shall not record this Lease, but may record a memorandum of this Lease in a form acceptable to Landlord with the Laramie County Recorder. Any recording costs associated with the memorandum shall be borne by Tenant.

ARTICLE 35. FORCE MAJEURE AND PERMITTED DELAYS

In the event that either party hereto shall be delayed or hindered in or prevented from the performance required hereunder by reason of strikes, lockouts, labor troubles, failure of power, riots, insurrection, war, acts of God, or other reason of like nature not the fault of the party delayed in performing work or doing acts (hereinafter, "**Permitted Delay**" or "**Permitted Delays**"), such party shall be excused for the period of time equivalent to the delay caused by such Permitted Delay. Notwithstanding the foregoing, any extension of time for a Permitted Delay shall be conditioned upon the party seeking an extension of time delivering written notice of such Permitted Delay to the other party within 10 days of the event causing the Permitted Delay, and the maximum period of time which Landlord may

delay any act or performance of work due to a Permitted Delay shall be 60 days. Notwithstanding the preceding, nothing in this Article shall excuse any obligations of Tenant involving the payment of money.

ARTICLE 36. LIMITATIONS ON LANDLORD'S LIABILITY

Notwithstanding anything to the contrary contained in this Lease, in the event of any default or breach by Landlord with respect to any of the terms, covenants and conditions of this Lease to be observed, honored or performed by Landlord, Tenant shall look solely to the estate and property of Landlord in the land and building(s) owned by Landlord comprising the Premises for the collection of any judgment (or any other judicial procedures requiring the payment of money by Landlord) and no other property or assets of Landlord shall be subject to levy, execution, or other procedures for satisfaction of Tenant's remedies.

ARTICLE 37. SEVERABILITY

Any provision of this Lease which shall prove to be invalid, void or illegal shall in no way affect, impair or invalidate any other provisions hereof and such other provisions shall remain in full force and effect.

ARTICLE 38. GOVERNING LAW AND VENUE

This Lease shall be governed by the laws of the State of Wyoming. Tenant and Landlord agree that any claims related to this Lease shall be filed in the State courts located in Wyoming or Utah.

ARTICLE 39. BROKERS

Each of Landlord and Tenant represent and warrant that it has not retained a real estate broker or other broker in connection with this Lease. Landlord and Tenant indemnify and hold each other harmless from and against any and all liability and cost which Landlord or Tenant may suffer in connection with real estate brokers claiming by, through, or under either party seeking any commission, fee or payment in connection with this Lease.

ARTICLE 40. TENANT'S CONDUCT OF BUSINESS

Tenant agrees, at such time it is operating its business in the Premises, to conduct its business in a first-class manner consistent with reputable business standards and practices.

ARTICLE 41. OBLIGATIONS THAT SURVIVE EXPIRATION OF THIS LEASE

In addition to those obligations specifically referred to in this Lease, as surviving the expiration or termination of this Lease, the following obligations shall survive the expiration or termination of this Lease: (a) any obligation herein permitted to be performed after the end of the termination of this Lease; (b) any obligation not reasonably susceptible of performance prior to the termination of this Lease; (c) any obligation arising under this Agreement to indemnify, defend or hold any person harmless, and (d) any obligation to be performed pursuant hereto at or before the end of the Term, which is not so performed.

ARTICLE 42. RULES AND REGULATIONS; DECLARATION

Tenant shall faithfully observe and comply with (i) the reasonable rules and regulations that Landlord shall, from time to time, promulgate and/or modify and (ii) with any Declaration or CC&Rs filed with the County Recorder relating to the Premises. The rules and regulations shall be binding upon the Tenant upon delivery of a copy of them to Tenant. Landlord shall not be responsible to Tenant for the non-performance of the above by any other tenants or occupants of the Building.

ARTICLE 43. ESTOPPEL CERTIFICATE

Landlord or Tenant shall, within ten (10) days after request by the other party, (i) execute and deliver to a written declaration (to the extent true) in substantially the same form as that attached hereto as **Exhibit E**: (a) ratifying this Lease; (b) expressing the commencement and termination dates thereof and whether any renewal options have

been exercised; (c) certifying that this Lease is in full force and effect and has not been assigned, modified, supplemented or amended (except by such writings as shall be stated); (d) that all conditions under this Lease to be performed by the party have been satisfied; (e) that there are no defenses or offsets against the enforcement of this Lease by Landlord, or stating those claimed by Tenant; (f) the amount of advance rental, if any, (or none if such is the case) paid by Tenant; (g) the date to which rental has been paid; (h) the amount of security deposited with Landlord, if any; and (i) such other reasonable factual statements as shall be requested. Such declaration shall be executed and delivered from time to time as may be requested by Landlord or Tenant.

ARTICLE 44. LEASE ADDENDUM – DOG HAUS

Landlord and Tenant acknowledge and agree that Tenant shall use the Premises as a Dog Haus Restaurant, pursuant to a franchise agreement ("Franchise Agreement") between Tenant and Dog Haus International, LLC ("Dog Haus"). Simultaneous with the execution of this Lease, Landlord and Tenant shall enter into an Addendum to Lease substantially in the form attached hereto as Exhibit G, which Addendum contains additional terms related to Dog Haus.

ARTICLE 45. ENTIRE AGREEMENT

This Lease contains all of the agreements of the parties hereto with respect to matters covered or mentioned in this Lease and no prior agreement, letters, representations, warranties, promises, or understandings pertaining to any such matters shall be effective for any such purpose. This Lease may be amended or added to only by an agreement in writing signed by the parties hereto or their respective successors in interest.

ARTICLE 46. ACCORD AND SATISFACTION

No payment by Tenant or receipt by Landlord of a lesser amount than the required Rent herein stipulated shall be deemed to be other than on account of the earliest stipulated rent nor shall any endorsement or statement on any check or any letter accompanying any check or payment as Rent be deemed an accord and satisfaction; and Landlord may accept such check or payment without prejudice to Landlord's right to recover the balance of any Rent or to pursue any other remedy in this Lease provided.

ARTICLE 47. MINIMUM STORE REQUIREMENT

Tenant acknowledges that Landlord is relying upon Tenant's representations regarding Tenant's current business plan to open and operate at least twenty (20) stores during the Term of this Lease, and during the Term of this Lease, Landlord shall provide to Tenant, subject to customary confidentiality obligations, information regarding the number of Tenant's other business locations and Tenant's financial condition. Tenant hereby covenants and agrees that once Tenant achieves twenty (20) stores during the Term of this Lease in accordance with Tenant's current business plan, Tenant, and or the Guarantors, collectively, will at all times thereafter during the Term of this Lease and including any Renewal Term have at least twenty (20) stores current and open and operating.

ARTICLE 48. USURY

Any amounts payable by Tenant hereunder shall not exceed the maximum non-usurious amount that may be charged under applicable law.

IN WITNESS WHEREOF, the parties hereto have executed this Lease for all purposes as of the date and year first written above.

TENANT:

HRARG DH Cheyenne WY, LLC

By: _____
Name:
Title:

LANDLORD:

RCB North 1, LLC by its Manager RCB Legacy, LLC

By: _____
Name: Jeffrey S. Bennion
Title: Manager

EXHIBIT A

DESCRIPTION OF PREMISES

The following real property located in Cheyenne Wyoming:

Lot 8, Block 1, North College Drive, Cheyenne, Wyoming 82001

EXHIBIT B
FLOOR PLAN

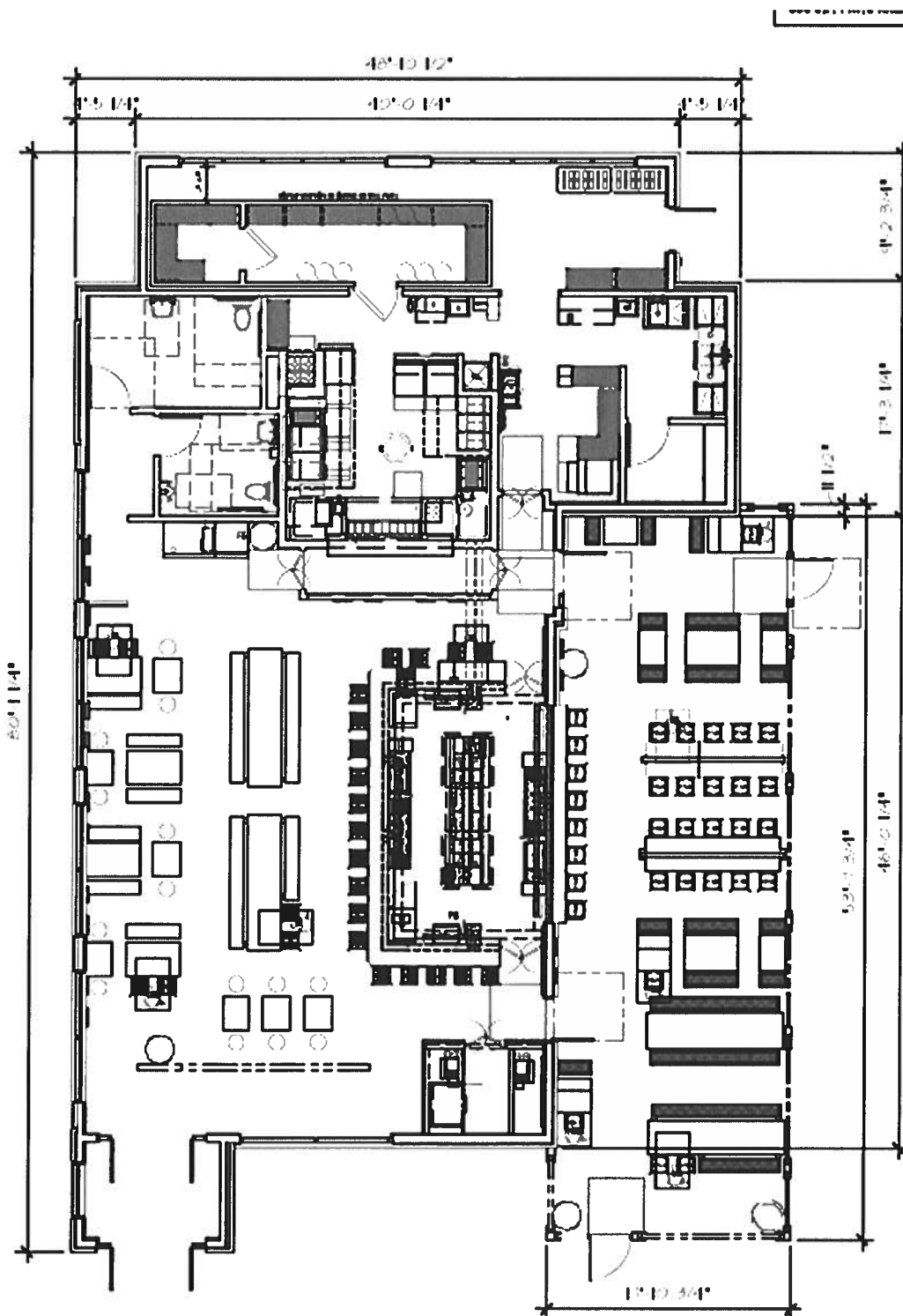


EXHIBIT C

RENT COMMENCEMENT CERTIFICATE

LANDLORD: RCB North 1, LLC

TENANT: HRARG DH Cheyenne WY, LLC

This Lease Commencement Certificate is made by Landlord and Tenant pursuant to that certain Lease (the "Lease") entered into as of _____, for the premises known as Lot 8, Block 1, North College Drive, Cheyenne, Wyoming (the "Premises"). This constitutes a supplementary addendum to the Lease as contemplated by Section 3.2 of the Lease.

1. Lease Commencement Date. Landlord and Tenant acknowledge and agree that the Rent Commencement Date is _____, and the Expiration Date is _____. Rent as contemplated by the Lease begins accruing to Landlord's benefit as of the Rent Commencement Date.

2. Base Rent. Landlord and Tenant acknowledge and agree that the initial Base Rent is \$175,000.00 Base Rent during the Term of the Lease is as follows:

	Lease Year	Base Rent
	1	\$175,000.00 Initial Base Rent
	2	\$175,000.00 Initial Base Rent
	3	\$175,000.00 Initial Base Rent
	4	\$175,000.00 Initial Base Rent
	5	\$175,000.00 Initial Base Rent
	6	\$192,500.00 Base Rent for Lease Years 1-5 + 10%
	7	\$192,500.00 Base Rent for Lease Years 1-5 + 10%
	8	\$192,500.00 Base Rent for Lease Years 1-5 + 10%
	9	\$192,500.00 Base Rent for Lease Years 1-5 + 10%
	10	\$192,500.00 Base Rent for Lease Years 1-5 + 10%
	11	\$211,750.00 Base Rent for Lease Years 6-10 + 10%
	12	\$211,750.00 Base Rent for Lease Years 6-10 + 10%
	13	\$211,750.00 Base Rent for Lease Years 6-10 + 10%
	14	\$211,750.00 Base Rent for Lease Years 6-10 + 10%
	15	\$211,750.00 Base Rent for Lease Years 6-10 + 10%
	16	Base Rent for Lease Years 11-15 + 10%
	17	Base Rent for Lease Years 11-15 + 10%
	18	Base Rent for Lease Years 11-15 + 10%
	19	Base Rent for Lease Years 11-15 + 10%
	20	Base Rent for Lease Years 11-15 + 10%
Renewal Option 1	21	Base Rent for Lease Years 16-20 + 10%
	22	Base Rent for Lease Years 16-20 + 10%
	23	Base Rent for Lease Years 16-20 + 10%
	24	Base Rent for Lease Years 16-20 + 10%
	25	Base Rent for Lease Years 16-20 + 10%
Renewal Option 2	26	Base Rent for Lease Years 21-25 + 10%
	27	Base Rent for Lease Years 21-25 + 10%
	28	Base Rent for Lease Years 21-25 + 10%
	29	Base Rent for Lease Years 21-25 + 10%
	30	Base Rent for Lease Years 21-25 + 10%
Renewal Option 3	31	Base Rent for Lease Years 26-30 + 10%
	32	Base Rent for Lease Years 26-30 + 10%
	33	Base Rent for Lease Years 26-30 + 10%
	34	Base Rent for Lease Years 26-30 + 10%
	35	Base Rent for Lease Years 26-30 + 10%

3. Acceptance of Premises. Tenant has inspected and examined the Premises, and Tenant finds the Premises acceptable and satisfactory in all respects in their current, “as is” condition. All of the work to be completed by Landlord, as contemplated by the Lease, has been fully completed and fulfilled.

4. Incorporation in Lease. This Certificate is incorporated into the Lease, and forms a supplementary and integral part thereof. This Certificate shall be construed and interpreted in accordance with all other terms and provisions of the Lease for all purposes.

Landlord”

RCB North 1, LLC

By: _____

Name: _____

Title: _____

“Tenant”

HRARG DH Cheyenne WY, LLC

By: _____

Name: _____

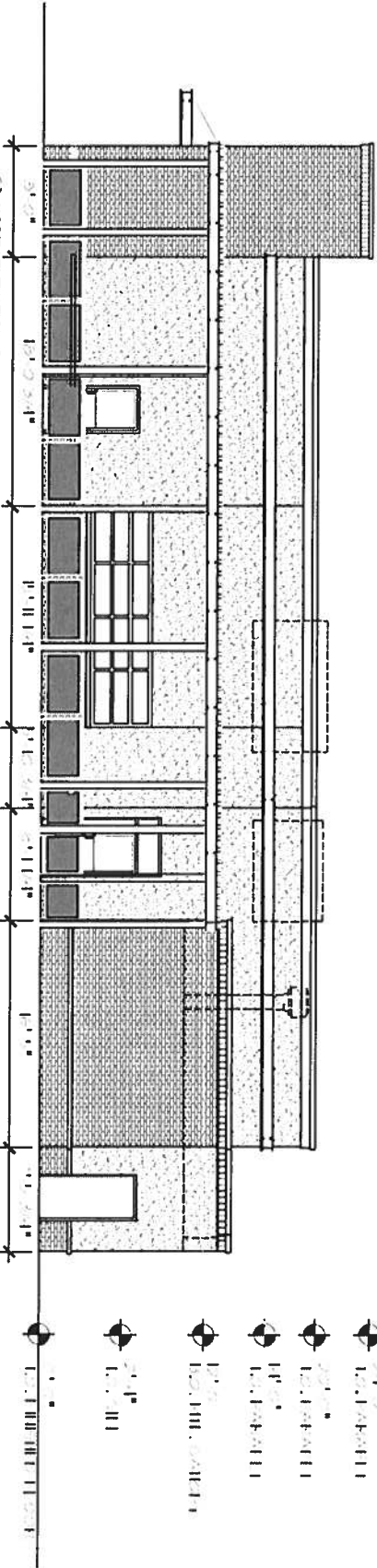
Title: _____

[illegible]

1. 1st Floor, 100 SF.
 2. 2nd Floor, 100 SF.
 3. 3rd Floor, 100 SF.
 4. 4th Floor, 100 SF.
 5. 5th Floor, 100 SF.
 6. 6th Floor, 100 SF.
 7. 7th Floor, 100 SF.
 8. 8th Floor, 100 SF.
 9. 9th Floor, 100 SF.
 10. 10th Floor, 100 SF.

1. 1st Floor, 100 SF.
 2. 2nd Floor, 100 SF.
 3. 3rd Floor, 100 SF.
 4. 4th Floor, 100 SF.
 5. 5th Floor, 100 SF.
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 10. 10th Floor, 100 SF.

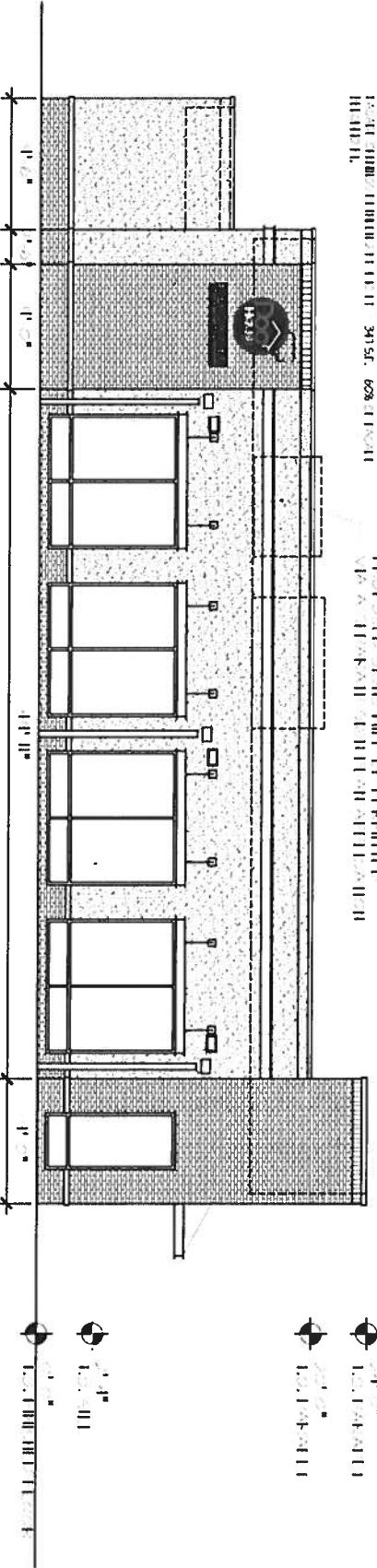
3 NORTH ELEVATION (RIGHT)



1. 1st Floor, 100 SF.
 2. 2nd Floor, 100 SF.
 3. 3rd Floor, 100 SF.
 4. 4th Floor, 100 SF.
 5. 5th Floor, 100 SF.
 6. 6th Floor, 100 SF.
 7. 7th Floor, 100 SF.
 8. 8th Floor, 100 SF.
 9. 9th Floor, 100 SF.
 10. 10th Floor, 100 SF.

1. 1st Floor, 100 SF.
 2. 2nd Floor, 100 SF.
 3. 3rd Floor, 100 SF.
 4. 4th Floor, 100 SF.
 5. 5th Floor, 100 SF.
 6. 6th Floor, 100 SF.
 7. 7th Floor, 100 SF.
 8. 8th Floor, 100 SF.
 9. 9th Floor, 100 SF.
 10. 10th Floor, 100 SF.

4 SOUTH ELEVATION (LEFT)



1. 1st Floor, 100 SF.
 2. 2nd Floor, 100 SF.
 3. 3rd Floor, 100 SF.
 4. 4th Floor, 100 SF.
 5. 5th Floor, 100 SF.
 6. 6th Floor, 100 SF.
 7. 7th Floor, 100 SF.
 8. 8th Floor, 100 SF.
 9. 9th Floor, 100 SF.
 10. 10th Floor, 100 SF.

1. 1st Floor, 100 SF.
 2. 2nd Floor, 100 SF.
 3. 3rd Floor, 100 SF.
 4. 4th Floor, 100 SF.
 5. 5th Floor, 100 SF.
 6. 6th Floor, 100 SF.
 7. 7th Floor, 100 SF.
 8. 8th Floor, 100 SF.
 9. 9th Floor, 100 SF.
 10. 10th Floor, 100 SF.

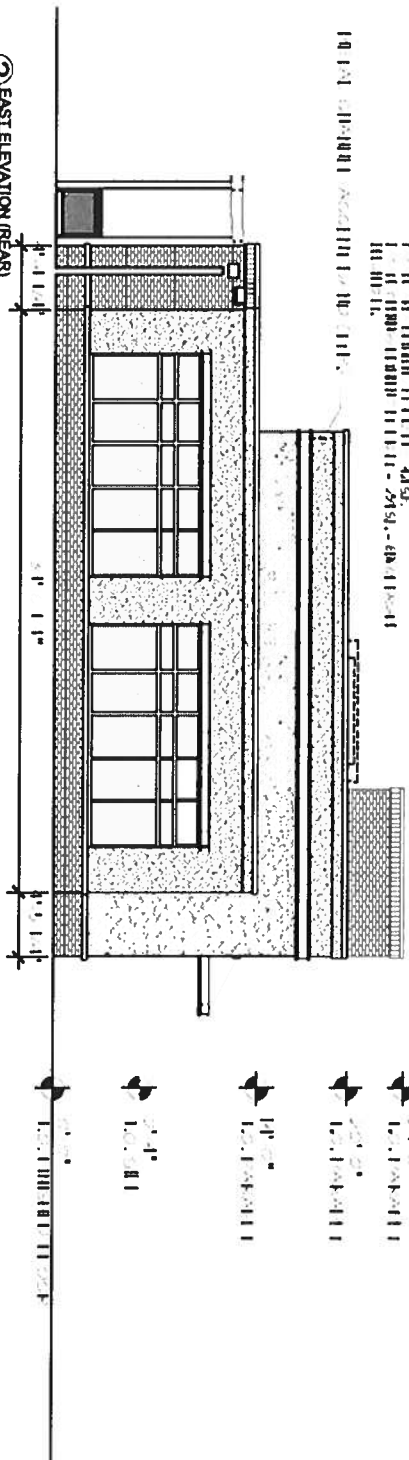
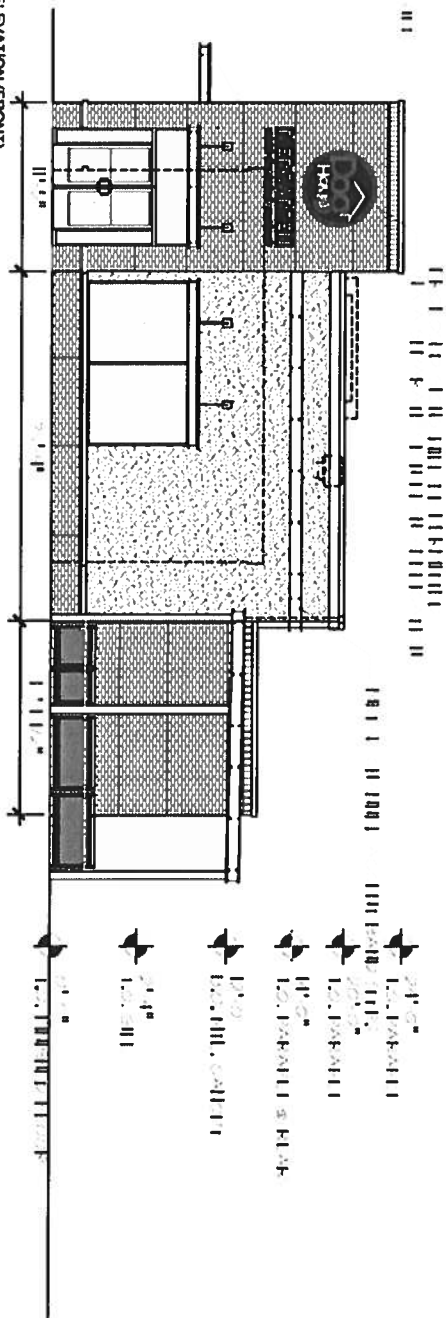
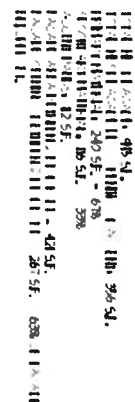


EXHIBIT E

TENANT ESTOPPEL CERTIFICATE

TO: _____

RE: Restaurant Lease Agreement dated _____, 2019, by and between RCB North 1, LLC, Landlord, and HRARG DH CHEYENNE WY, LLC, as Tenant, on the Premises (as defined in the Lease).

The undersigned tenant (the "***Tenant***") certifies and represents unto the addressee hereof (hereinafter referred to as the "***Purchaser***" or "***Lender***"), its attorneys and representatives with respect to the above-described lease, a true and correct copy of which is attached as **Exhibit A** hereto (the "***Lease***") as follows:

1. All space covered by the Lease has been furnished to the satisfaction of Tenant, all conditions required under the Lease have been met, and there is no default by Landlord or Tenant and Tenant has accepted and taken possession of the Premises covered by the Lease.

2. The Lease is for a total term of twenty (20) Lease Years commencing _____, 201____, has not been modified, altered or amended in any respect and contains the entire agreement between Landlord and Tenant, except as follows: _____
(list amendments and modifications other than those, if any, attached to and forming a part of the attached Lease as well as any verbal agreements; or write "None").

3. As of the date hereof, the Annual Base Rent under the Lease is \$_____ for each Lease Month, and the Additional Rent is \$_____ for each Lease Month, subject to escalation in accordance with the terms and provisions of the Lease.

4. No Rent has been paid by Tenant in advance under the Lease except for \$_____.00 which amount represents rent for the period beginning _____, 20____ and ending _____, 20____ and Tenant has no charge or claim of offset under said Lease or otherwise, against rents or other amounts due or to become due thereunder. No "discounts," "free rent," or "discounted rents" have been agreed to or are in effect except for _____.

5. Tenant has no claim against Landlord for any deposit or prepaid rent except as provided in Paragraphs 4 and 5 above.

6. The Landlord has satisfied all commitments, arrangements or understandings made to induce Tenant to enter into the Lease, and Landlord is not in any respect in default in the performance of the terms and provisions of the Lease, nor is there now any fact or condition which, with notice or lapse of time or both, would become such a default.

7. Tenant is not in any respect in default under the terms and provisions of the Lease (nor is there now any fact or condition which, with notice or lapse of time or both, would become such a default) and has not assigned, transferred or hypothecated its interest under the Lease, except as follows:
_____.

8. Except as expressly provided in the Lease or in any amendment or supplement to the Lease,
Tenant:

(i) does not have any option or preferential right to purchase all or any part of the Premises or all or any part of the building or premises of which the Premises are a part, and

(ii) does not have any right, title, or interest with respect to the Premises other than as Tenant under the Lease.

9. There are no understandings, contracts, agreements, subleases, assignments, or commitments of any kind whatsoever with respect to the Lease of the Premises covered thereby except as expressly provided in the Lease or in any amendment or supplement to the Lease set forth in Paragraph 2 above, copies of which are attached hereto.

10. The Lease is in full force and effect and Tenant has no defenses, setoffs, or counterclaims against Landlord arising out of the Lease or in any way relating thereto or arising out of any other transaction between Tenant and Landlord.

11. The Tenant has not received any notice, directly or indirectly, of a prior assignment, hypothecation or pledge by Landlord of the rents or the Lease to a person or entity.

12. The current address to which all notices to Tenant, as required under the Lease, should be sent is: 2999 N. 44th Street, Suite 400, Phoenix, AZ 85018.

13. Addressee's rights hereunder shall inure to its successors and assigns.

14. Tenant acknowledges that Addressee is acquiring ownership of the building in which the Premises are located. Tenant agrees that upon Addressee acquiring ownership, Tenant will attorn and does attorn and agrees to recognize and does recognize Addressee as Landlord on the condition that Addressee agrees to recognize the Lease referred to in this document as long as Tenant is not in default thereunder, provided, however, that Addressee shall have no liability or responsibility under or pursuant to the terms of the Lease for any cause of action or matter not disclosed herein or that accrues after Addressee ceases to own a fee interest in the property covered by the Lease. Notwithstanding anything to the contrary contained herein or in the Lease, the (Mortgagee/Lender) or any success-in-interest to (Mortgagee/Lender) shall be liable and responsible for the performance of all covenants and obligations of Landlord under the Lease accruing from and after the date that it takes title to the property.

15. Tenant makes this certificate with the understanding that the Addressee is contemplating acquiring the Premises and that if Addressee acquires the Premises, it will do so in material reliance on this certificate and Tenant agrees that the certifications and representations made herein shall survive such acquisition.

Notwithstanding anything contained in this Estoppel Certificate to the contrary, or any applicable law, provided such person has authority to sign for and bind Tenant, the person or persons executing this agreement in behalf of Tenant shall incur no personal liability with respect to Tenant's obligations or performance under the Agreement.

Executed on the __ day of _____, 2021.

TENANT:

HRARG DH CHEYENNE WY, LLC

By: _____

Name:

Title:

EXHIBIT G

LEASE ADDENDUM- DOG HAUS

ADDENDUM TO LEASE AGREEMENT

THIS ADDENDUM TO LEASE AGREEMENT (this "Addendum") is effective as of _____, 2017 (the "Effective Date"), and is being signed simultaneously with the Lease (the "Lease") dated _____, 2017 between _____ (the "Franchisee" or "Tenant") and _____ (the "Landlord") for the real property commonly known as _____ (the "Premises").

1. **Incorporation and Precedence.** This Addendum is incorporated into the Lease and supersedes any conflicting provisions in it. Capitalized terms not otherwise defined in this Addendum have the meanings as defined in the Lease.

2. **Background.** The Tenant will operate a Dog Haus restaurant at the Premises under a Franchise Agreement (the "Franchise Agreement") with Dog Haus International, LLC (the "Franchisor"). By entering into a franchise relationship with the Franchisor, the Tenant has agreed to grant the Franchisor a security interest in the Lease, all of the furniture, fixtures, inventory and supplies located in the Premises as collateral for the payment of any obligation, liability or other amount owed by the Tenant or its affiliates to the Franchisor under the Franchise Agreement. The Franchise Agreement also requires that the Lease contain certain provisions that the Tenant is requesting the Landlord to include.

3. **Marks.** The Tenant has the right to display the trade and service marks of the Franchisor in accordance with the specifications required by the Franchisor, subject only to the provisions of applicable law, for the term of the Lease.

4. **Easement.** The Landlord grants to the Tenant during the term of the Lease a non-exclusive right and easement over that portion of the property as may be required by the Tenant to improve, renovate, repair, replace and maintain the Premises or replace its signage or its panel on the pylon sign for the property. The Tenant has the right to change or alter the signage at any time during the term of the Lease provided the signage is in compliance with all applicable governmental codes and regulations. The signage may include: (a) signage on the exterior front wall of the Premises; (b) signage on another exterior portion of the Premises; (c) a separate pylon sign on the property; (d) separate signage on the property, (e) a panel on the pylon sign for the property; and (f) other signage which may be required by the Franchisor or agreed upon by the Landlord and the Tenant.

5. **Copies of Reports.** The Landlord agrees to provide copies of all revenue and other information and data in Landlord's possession related to the operation of the Tenant's Dog Haus restaurant on a timely basis as the Franchisor may request, during the term of the Lease.

6. **Notice of Default.** The Landlord will give written notice to the Franchisor (concurrently with the giving of such notice to the Tenant) of any defaults (a "Default") by the Tenant under the Lease by certified mail, return receipt requested, or by nationally recognized overnight courier service, at the following address or to such other address as the Franchisor may provide to Landlord from time to time:

Dog Haus International, LLC
22 Central Court
Pasadena, California 91105
Attention: Franchise Administrator

Such notice will grant the Franchisor the right, but not the obligation, to cure any Default, if the Tenant fails to do so, within an additional fifteen (15) days after the expiration of the period in which the Tenant may cure the Default under the Lease.

7. Franchisor's Assumption of Lease. In the event of a default of the Lease by Tenant or the default of the Franchise Agreement by Tenant, and upon written notice by the Franchisor to have the Lease assigned to the Franchisor or a qualified franchisee of Franchisor as lessee (the "Assignment Notice"), (i) the Franchisor or a qualified franchisee of Franchisor will become the lessee of the Premises and will be liable for all obligations under the Lease arising after the date of the Assignment Notice and (ii) the Landlord will recognize the Franchisor or a qualified franchisee of Franchisor as the lessee of the Premises effective as of the date of the Assignment Notice. Notwithstanding anything in the Lease to the contrary, Landlord agrees that the lease and the right, title and interest of Tenant and any subsequent or successor Tenant thereunder, may be assigned to Franchisor or its parents, subsidiaries or affiliates or to a qualified franchisee of Franchisor. In the event of an assignment to a Franchisor entity, Franchisor shall at all times have the right to reassign the Lease, without charge and without Landlord consent being required to a qualified franchisee of Franchisor and the Franchisor entity shall thereupon be released from any further liability under the Lease.

8. Default Under Franchise Agreement. Any Default under the Lease which is not cured by Tenant within any applicable cure period also constitutes grounds for termination of the Franchise Agreement.

9. Use and Competing Business. Tenant shall only use the Premises for the purpose of operating a "Dog Haus" restaurant that engages in the sale of hot dogs, sausages, burgers and other related food products and side dishes for dine-in or take-out, including any incidental merchandising as is customary in a Dog Haus restaurant now or in the future. Landlord shall not during the term of the Lease, including any renewals or extensions, permit directly or indirectly, another restaurant in the shopping center with more than 6 beers on tap or that sells hot dogs, sausages, or burgers for dine-in or take-out. In the event that Landlord breaches this provision, then Tenant shall be entitled to an immediate reduction of its rent to One Dollar (\$1.00) per month until such time as the breach is cured if possible or for the remainder of the term of the Lease and any renewals or extensions thereof if the breach cannot be cured.

10. Non-Disturbance. So long as the Lease term continues and the Tenant is not in Default under the Lease, the Tenant's use, possession and enjoyment of the Premises will not be interfered with by any lender of the Landlord or any other person. The Landlord agrees to use its best efforts to obtain prior to commencement of the Lease any documents necessary to ensure the foregoing, including a Subordination, Non-Disturbance and Attornment Agreement or similar agreement.

11. Latent Defects. Notwithstanding anything contained in the Lease, Landlord will repair any latent defects to the Premises discovered by Tenant and communicate in writing to Landlord within one (1) year of execution of the Lease.

12. Amendment. The Landlord and the Tenant will not cancel, terminate, modify or amend the Lease including, without limitation, the Franchisor's rights under this Addendum, without the Franchisor's prior written consent.

13. Benefits and Successors. The benefits of this Addendum inure to the Franchisor and to its successor and assigns.

14. Remaining Provisions Unaffected. Those parts of the Lease that are not expressly modified by this Addendum remain in full force and effect.

Intending to be bound, the Landlord and the Tenant sign and deliver this Addendum effective on the Effective Date, regardless of the actual date of signature.

Landlord

Name: _____
Title: _____

Address: _____

Phone: _____

Tenant

Name: _____
Title: _____

Address: _____

Phone: _____

SLIDERS

BURGER

angus beef, caramelized onions, white american cheese, mayo

DOG

all beef mini dog, smoked bacon, haus made cheese sauce

CORN DOG

all beef mini dog dipped in our haus made root beer batter

ON THE SIDE

FRIES

TATER TOTS

CHEESE FRIES OR TOTS

CHILI CHEESE FRIES OR TOTS

HAUS SLAW

HAUS CHILI

ONION RINGS

COOKIES

THE LOVE BOAT

fries or tots, haus chili, haus slaw

DRINKS

CRAFT BEERS

a rotating selection of craft beers

FOUNTAIN DRINKS

HAUS WINES

red and white wine

BOTTLED SODAS

BUILD YOUR OWN

DOG

beef • turkey • veggie

BACON WRAPPED DOG

SAUSAGE

bratwurst
polish kielbasa
spicy italian

BURGER

beef • veggie

TOPPINGS

haus chili
avocado
sauteed mushrooms
caramelized onions
pickled peppers
crispy fried onions
haus slaw

pastrami

hickory smoked bacon

organic free-range egg

sauerkraut

mozzarella

wild arugula

cheese sauce

cotija

white american

cheddar

HAUS SAUCES

1001 island
garlic aioli
chipotle aioli

spicy basil aioli

whole grain mustard aioli

peanut sauce

THE BASICS

ketchup
mayo
sriracha
buttermilk ranch
pickled jalapeños

onions

lettuce

tomatoes

dill pickles

bbq sauce

yellow mustard

spicy brown mustard

sweet pickle relish

ICE CREAM

proudly serving
Fosselman's Ice Cream

SHAKES

dutch chocolate,
vanilla, salty caramel

THE FLOATER

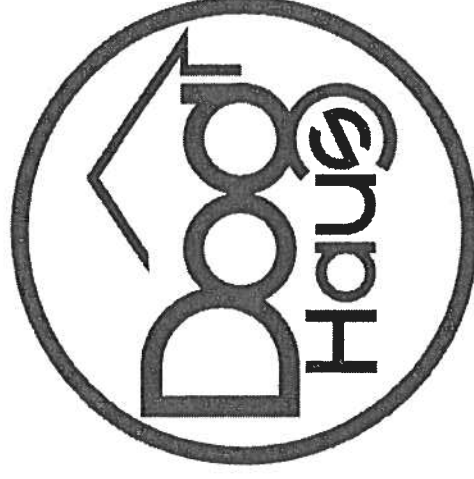
ice cream
and a bottled soda

SOFT SERVE CONE

vanilla

SOFT SERVE CUP

vanilla



Famous

DOGS
SAUSAGES
BURGERS

CITY NAME

1111 fake st., fake town USA 11111

111.111.1111

TO GO ORDERING
FOR INDIVIDUALS OR GROUPS
TEXT DOGHAUS TO 37733 TO DOWNLOAD OUR APP

STAY IN THE KNOW
LIKE US AND FOLLOW US



DOGHAUS.COM

NOW FRANCHISING

HAUS DOGS

signature all beef skinless dogs

S000 CALI

wild arugula, crispy onions, spicy basil aioli, avocado, tomato

DOWNTOWN DOG

smoked bacon wrapped dog, caramelized onions, mayo, pickled peppers, mustard, ketchup

COWBOY

smoked bacon, bbq sauce, white american cheese, crispy onions

OLD TOWN DOG

smoked bacon wrapped dog, pickled jalapeños, chipotle aioli, caramelized onions, cotija cheese

SCOTT BAIOLI

smoked bacon, garlic aioli, white american cheese, caramelized onions

LITTLE LEAGUER

haus chili, onions, cheddar cheese

FREE BIRD

turkey dog, avocado, ranch, smoked bacon, tomato

IT COULD BE WÜRST

upgrade your haus dog with a gourmet sausage

CLASSIC CORN DOG

all beef skinless dog in our haus made root beer batter

HAUS SAUSAGES

hand crafted sausages

DAS BRAT

bratwurst, caramelized onions, whole grain mustard aioli, sauerkraut

ANOTHER NIGHT IN BANGKOK

spicy thai currywurst, haus slaw, peanut sauce, crushed peanuts

PIG LEBOWSKI

polish kielbasa, fries, haus slaw, bbq sauce

THE HOT CHICK

chicken fontina, tomato, avocado, crispy onions, sriracha, ranch

THE FONZ

spicy italian, pastrami, melted mozzarella

S000 VEGGIE

veggie smoked apple, tomato, avocado, wild arugula, crispy onions, spicy basil aioli

RESERVOIR HOG

polish kielbasa, haus chili, haus slaw, yellow mustard

MAKE IT A COMBO

add fries or tots and a fountain drink

SAUSAGE CORN DOG

any sausage dipped in our haus made root beer batter

HAUS BURGERS

hormone and antibiotic free

RINGER

smoked bacon, bbq sauce, cheddar cheese, onion rings

THE FREIBURGER®

white american cheese, mayo, fried egg, haus slaw, fries

LITTLE MULE

fried egg, cotija cheese, white american cheese, avocado, pickled jalapeños, chipotle aioli

HOLY AIOLI

smoked bacon, garlic aioli, white american cheese, caramelized onions

AVA MARIA

sautéed mushrooms, cheddar cheese, mayo, caramelized onions

THE HANGOVER

smoked bacon, haus chili, fried egg, mayo, white american cheese

CHEESEBURGER

white american cheese, 1001 island, onion, lettuce, tomato

MAKE IT A DOUBLE

add a second patty with cheese to your burger

KIDS MEAL

any 2 sliders plus fries or tots and a fountain drink

State of Wyoming

Department of Revenue

Excise Tax Division

Sales/Use Tax License No: 02012656 Business Start Date : 12/01/2020 Certificate Print Date: 11/18/2020

The vendor shown below has registered with the Department of Revenue and has been authorized to collect the sales/use tax imposed by the sales/use Tax Act of 1937, as amended and to furnish receipts therefore. This license shall be valid and effective until canceled or revoked and is not transferable.

**Location: 3838 ATKINS ST
CHEYENNE WY 82001-6198
UNITED STATES**

**Issued To: DOG HAUS
HRARG DH CHEYENNE WY LLC
2999 N 44TH ST STE 400
PHOENIX AZ 85018-7251
UNITED STATES**

Display Conspicuously at the Place of Business for Which Issued

Cut along this line to separate license certificate. Please retain the information below for your reference.

WYOMING SALES/USE TAX REPORTING INFORMATION

- 1. Your filing frequency is Monthly beginning: 12/1/2020. Quarterly filers will be setup on calendar quarter. If you are a quarterly filer, your first return may be for a portion of a calendar quarter.**
- 2. You will receive your return approximately the first week of the month in which it is due. Example: MONTHLY filers; January return will be received first half of February and it must be post marked on or before the last day of February. QUARTERLY filers; January, February, and March returns will be received first half of April and must be post marked on or before the last day of April.**
- 3. Failure to receive a return from the Department of Revenue does not relieve you from the responsibility of filing and paying the tax due on or before the due date. Returns must be filed even if no sales were made or any tax due.**
- 4. The postmark date determines the timeliness of your return. Returns with a late postmark are subject to penalty and interest.**
- 5. Please notify the Excise Tax Division at the Cheyenne Office in writing if there is a change of address or ownership. Be sure to include your Wyoming Sales/Use tax license number on any correspondence and/or remittance sent to the Department to ensure timely processing.**

EXHIBIT A

<u>Names and Addresses of Members</u>	<u>Capital Contribution</u>	<u>Percentage Interest</u>
RCH – Goalz Holdings, LLC 2999 North 44th Street, Suite 400 Phoenix, Arizona 85018 Attn: Craig Hannay Email: channay@hannayra.com	\$16,666.67	25%
HIP Lending Group, LLC 2999 North 44th Street, Suite 400 Phoenix, Arizona 85018 Attn: Craig Hannay Email: channay@hannayra.com	\$50,000.00	75%
Totals	<u>\$66,666.67</u>	<u>100%</u>